

No. 20-12897

**THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

DEEPGULF, INC. AND TOKE OIL AND GAS, S.A.

Plaintiff / Appellant,

v.

MARC MOSZKOWSKI,

Defendant /Appellee

On Appeal from the United States District Court for the Northern District of
Florida, Pensacola Division

Case No. 3: 18-cv-01466-TKW-MJF

APPENDIX TO APPELLEE'S BRIEF

VOLUME II: Appellee's Letters to Appellant's Shareholders

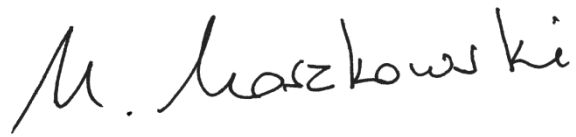
December 2, 2020

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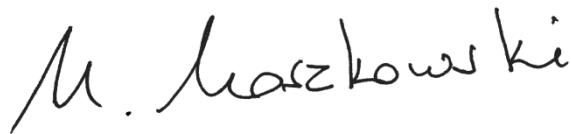
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CERTIFICATE OF SERVICE

1 HEREBY CERTIFY that I have, on this 2nd day of December 2020, furnished a copy of the foregoing to the Appellant's Counsel, Braden K. Ball, via the Court's E-filing system.



Marc Moszkowski, Pro Se

email: m.moszkowski@deepgulf.net

Phone: +1(850) 316 8462

Le Verdos

83300 Châteaudouble, France

Letter from DeepGulf's President to the Shareholders

19 November, 2017

Dear DeepGulf Shareholder,

I am writing this long letter from overseas, since I had to leave U.S. soil last February, on the day my non-immigrant visa expired. A permanent residency visa (Green Card) had been finally approved by U.S. authorities several months earlier, pending a proof of funds, but the Chairman of the company's Board of Directors, Rus Howard, who had been in charge of financial matters and human resources since 2005, had chosen to drop the application without letting me know. I don't know whether the decision by Rus to drop the application was deliberate or not, in order to force me out of the country, but after nearly twenty years of calling the U.S. home I finally had to leave with only one small bag, leaving behind all my belongings, furniture, artwork, books, records, clothing, cars, etc. Quite an upsetting experience.

However, in this forced exile I chose to continue working hard for the future of DeepGulf, despite the lack of salary, the absolute lack of financial support, and a growing dispute with Rus. The main motivation for my stubbornness in serving the company comes from the loyalty I feel toward the forty or so shareholders, despite Rus' assurance on multiple occasions that I shouldn't feel any moral obligation toward the investors, since investors were prepared to the possibility of losing their investment anyhow. I disagreed heartily with the notion and chose to continue doing my utmost so that their investment could find a reward at some point in the future. This has been a major recurring topic in my conversations with several stakeholders in the company, including Rus.

After a few years spent thoroughly surveying, through three successful contracts, the ocean depths and the shores of the island of Timor, I have been engaged since 2013 almost exclusively in developing a new market for the electrification of several islands in a large region encompassing Northern Australia and Eastern Indonesia. It was around that time that the financial support I found in the company, which was contributing to my living expenses, ran out

I have single-handedly developed novel techniques and methods, some of them patented since, which will make possible the ambitious project to provide affordable electricity to the area of interest, powered by the abundant natural gas produced in the region. To date, the projects amount to a combined value exceeding a billion dollars.

I have developed over the years long-term professional relationships with several highly skilled individuals, in East Timor, Indonesia, South Korea, the Philippines, and Australia, some at the highest political level. These individuals are highly committed to my efforts and demonstrate their commitment on a daily basis.

As with every high profile infrastructure or energy project anywhere in the world, the projects are politically sensitive and about one half of my efforts have been dedicated to resolving political issues, a process that was not made easier by my firm and early refusal to allow any personal payment to representatives of governmental clients.

More information about these activities can be found at www.deepgulf.net.

I am deeply grateful for the past generosity of early shareholders, who invested as much as three quarters of a million dollars to support the company's development. However, this generous cash capital proved insufficient, and by 2013 the continuation of the company's activities required the injection of some of my personal funds, as had already been the case before the first contract was signed in 2008. In total I have injected a little over \$200,000 of my personal earnings in the company, and have not received any salary since March 2013. The company owes me to this day about \$750,000. That includes my agreed salary of \$120,000 per year for more than 4 ½ years as well as my direct contribution of \$200,000.

Late in 2014 the company, through its Chairman, all but abruptly abandoned me to my own devices, but I managed to pursue our ambitious projects from home on a thrifty budget, which was funded independently of the company and will need to be compensated at some point. I want to offer my thanks for the kind and generous additional support provided by some private sponsors in the U.S., South Korea, East Timor, Indonesia, and Australia, who paid personally for traveling and accommodation expenses during the long periods spent in South Korea and Indonesia, as recently as in late 2016.

I continue to dedicate all my time to the projects, quite persistently, or perhaps stubbornly, sixteen hours a day, seven days a week. My daily relationship with the several actors in the region is as strong as ever.

However my relationship with Rus has seriously deteriorated, and my willingness to cooperate with him has all but disappeared, since I became strongly convinced that his major goal after having me exiled is my personal destruction, and therefore that of the company. I will try in the following paragraphs to explain my position.

I had written you a similar letter in January 2017 but then decided against sending it: I was concerned it might embarrass Rus, and would bring the difficult relationship to the brink of irreversible damage.

However, a new element was introduced yesterday: Rus accused me in writing of "*embezzlement and white collar crime*", which I should find quite amusing since I haven't received any compensation for the last four and a half years and the company owes me \$750,000 in unpaid salaries and for the reimbursement of the monies I injected in the company, but, given the hardship of the current situation, I don't find the accusation humorous at all. Besides, never having made any financial transaction from any company bank account, it is hard to understand how I could have "*embezzled*" any of the company's money.

As you probably know, our projects took place in Timor, in a remarkably insalubrious environment, 10,000 miles from home, with scarcely enough food and in great discomfort, without air conditioning mostly despite a stifling climate, without roads much of the time, especially in the rainy season, without any kind of medical assistance and without the possibility of medical evacuation, and away from friends and family for several months at a time. I was stalked by 15-foot saltwater crocodiles sometimes on a daily basis, was nearly killed in the surf on a madreporic reef while rescuing singlehandedly for 19 grueling days a stranded survey ship with a crew of 15 on board (and finally succeeded), was assaulted and robbed by armed masked individuals, risked my life crossing wild rivers in flood, was involved in a serious car crash, and finally came to within an inch of dying after the Papuan strain of malaria hit me.

Still, Rus is somehow blaming me for having received living allowances, living expenses, and part of my salary from the client company, Toke Oil & Gas, of which I had been appointed President Director General by its Timorese owners, for various legitimate reasons, all obviously beneficial to DeepGulf. DeepGulf was one of Toke Oil & Gas's subcontractors. DeepGulf had been invited in Timor by the Timorese founders of Toke Oil & Gas to support Toke Oil & Gas, not to substitute for it. Any claim to the contrary would be frankly disingenuous.

The position was very demanding and the scope of work greatly exceeded DeepGulf's in amplitude, difficulty, and exposure. It is hard to imagine how the payment of customary local expenses by a third party could affect DeepGulf's cash-flow negatively, when on the contrary it increased it. Or did Rus believe that my hourly wage for discharging huge responsibilities over hundreds of workers in such a difficult environment should be less than a third of his, when his only job was to staff a comfortable office, complete with secretaries, five minutes from home, whenever he was not flying recreationally, diving, or playing ball? Is there any doubt that, irrespective of who the President Director General actually was, he would have been entitled to compensation? At any rate it was the prerogative of the client company to decide whom to hire and how to compensate its employees, certainly not Rus', and, no matter what, the client's other expenses could not have changed a thing to the contractual obligations it had toward its subcontractor DeepGulf, all of which were faithfully discharged.

For reference only, Toke Oil & Gas' President Director General's total compensation between 2008 and the end of the last project in 2012 amounted to \$345,000.00, out of a revenue of \$14,900,000.00, while the compensation of Toke Oil & Gas' other two Directors totaled \$959,764.22.

The two companies worked together, they were not competitors, so much so that I arranged for one of the three shareholders to later sell his shares to DeepGulf for one dollar, and still later for the company to become a wholly owned subsidiary of DeepGulf's. Comprehensive financial information was handed over to Rus more than 6 years ago. Rus never had any question until after mid-2017 but is now accusing me of "*embezzling*" a seven-figure amount and of "*white collar crime*", despite his not having received any novel information since 2011.

It seems Rus is currently plotting to have me removed from my position, with the help of some of the shareholders, and I suspect the real reason for his accusations of embezzlement is to try to find a sufficiently legitimate reason in his mind to eschew the payment of the \$750,000 the company currently owes me. For the life of me, I can't imagine who on Earth could replace me in the pursuit of the current endeavors, and if funds became suddenly available to pay for the salary and expenses of some new officers, how I could be prevented from rightfully claiming the monies that the company owes me.

In the midst of the dispute, Rus is also planning to seat a very close personal friend and partner of his on the Board of Directors, a move I find rather objectionable morally at this juncture. I proposed to interview the gentleman before I could cast my vote, and sent him a request for a meeting, which would be witnessed by a third Director, but so far my request has been ignored, although the gentleman was at the house of the third Director yesterday.

I believe the relationship started deteriorating seriously in September 2014, when I vehemently refused to admit Rus as a co-inventor on one of my patent applications, since his claim to co-inventorship was frivolous and would jeopardize the patent in the future. The patent was later awarded. Another reason for Rus' acrimony was that I discussed with him in early September 2016 the need for him to transfer part of his shares to the sponsors who actually paid for my

overseas trips and my survival at home even though they received strictly no compensation from the company. I was in Korea at the time. Evidently, the share of the company I thought they deserved could not come out of the shareholders' who did pay for their shares, and certainly not out of my mine, so it had to come out of his, since he had nearly totally abandoned the company, its shareholders, me, and the sponsors two years prior.

Concurrently, while Rus has been demanding all sorts of information from me, he refuses to answer my own questions regarding details about his activities as de-facto Chief Financial Officer and Human Resources Manager, and the justification for the salaries he paid himself and his secretaries for several years, as well as for the lease of his office. We're now in a stalemate, Rus refusing to report to me, the Chief Executive Officer, about his activities as an officer of the company.

For the survival of the company and the preservation of stock value, a solution needs to be found. I unapologetically assert that the company cannot be successful without me at the helm, since I devised all the technologies, authored the patents (most of which I own personally until the company pays my past salaries), found the potential clients and suppliers, negotiated all the past contracts in a way that proved very favorable to the company in times of disputes with suppliers as well as clients (we had more than our share of it), managed all the projects and the two companies, and built a loyal team overseas that I doubt would follow a new leader. Regrettably, I also believe Rus is on the path to irreversibly destroy the company if we let him.

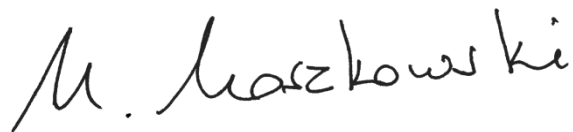
I am DeepGulf's largest shareholder and own 46.2% of the company's common stock.

I hope the shareholders, who paid good money for their shares, will help me find a viable solution.

Please feel free to contact me if you have any question. I would like to hear from you if you are prepared to support me in my difference of views with Rus.

Sincerely yours.

Marc Moszkowski
President
m.moszkowski@deepgulf.net

A handwritten signature in black ink that reads "M. Moszkowski". The signature is written in a cursive, flowing style.

Letter from DeepGulf's President to the Shareholders

22 December, 2017

Dear DeepGulf Shareholder,

I have received only one reply to my letter to the shareholders dated November 19th last, but, although Rus has directed me not to write you, I feel I should share with the shareholders my view on financial information which I have deduced and calculated about my activities since 2005.

Rus has sought and obtained the votes of 18 shareholders representing with him a 51% majority of votes and they have appointed him as their proxy in a new election to the Board of Directors. Most of the 18 shareholders had not received my previous letter, since Rus refused to provide their email addresses to me, despite several requests. As a result, he plans to seat one of his closest friends on the Board of Directors, a move I find objectionable in the midst of a serious dispute between the two largest shareholders.

Rus is accusing me of having embezzled as much as \$900,000 from the company, or perhaps even more. I believe such an irrational claim aims at artificially offsetting the approximately \$750,000 which the company owes me, and also at deflecting attention away from real issues. This libelous accusation has even less merit than the previous one, but gives me the opportunity to present some basic financial facts to you.

Item	Period	Credit	Debit
DeepGulf self-funding (from Marc's savings)	2005-2007	\$100,000	
DeepGulf revenue from Marc's projects (Toke)	2008-2012	\$1,290,105	
DeepGulf revenue from Marc's consulting	2008-2014	\$125,500	
<i>DeepGulf revenue from Marc's activities</i>			<i>\$1,515,605</i>
DeepGulf funding by shareholders	2008-2012	\$756,000	
Current overdraft	2017	\$50,000	
<i>Revenue from funding and bank credit</i>			<i>\$806,000</i>
Marc's self-funded expenses	2005-2007		\$100,000
Marc and associates' travel and living expenses	2008-2017		\$325,000
Marc's DeepGulf salaries, benefits, federal taxes	2008-2012		\$630,000
<i>Marc's operational expenses</i>			<i>\$955,000</i>
<i>Marc's total expenses, including self-funding</i>			<i>\$1,055,000</i>
Other expenses (only Rus can explain - Marc had no control or input)	2008-2017		\$1,266,605
Total		\$2,321,605	\$2,321,605

Third party accounting

<i>Toke revenue</i>	<i>\$14,900,000</i>	
<i>Marc's Toke salaries</i>		<i>\$345,000</i>
<i>Marc's expenses in Timor (paid by Toke)</i>		<i>\$100,000</i>

You will notice in the above table that my activities resulted in crediting the amount of \$1,515,605 to DeepGulf's accounts, from which \$100,000 was expended out of my personal savings for activities that led to the first contract, and \$955,000 was expended afterwards to pay for my salaries and all traveling and living expenses for myself, as well as business expenses for my operational associates in Asia and Australia. This estimate is conservative and likely exceeds the actual figure.

I never used any corporate office, nor any corporate facility (except for a couple of Board of Directors meetings), and I did not receive any technical support from any corporate employee or director.

The net positive cash-flow that was generated through my activities overseas, after all operational expenses, was therefore at least \$460,605, which amounted to 33% of operational revenue. The positive cash-flow was enhanced, not diminished, by the fact that some of my compensation and expenses were funded by a third party company. As a consequence, DeepGulf benefited from large savings on local expenses and was not required to pay any expatriation or offshore per-diem allowance. For reference, the salary Rus had agreed to pay me amounted to less than my annual tax disbursements.

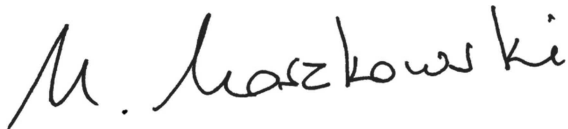
The \$460,605 cash-flow was produced before taking into consideration any of the \$756,000 capital that the shareholders contributed. It seems the capital raised from the shareholders was not used in any way in my operations, which as I have said returned a positive cash-flow of 33% of operational revenue.

Still, at the end of 2017 I am told Rus reports a bank overdraft of about \$50,000, which leads to the conclusion that the amount of company funds spent by Rus over the years was \$1,266,605 (see above). I have repeatedly requested Rus since November 2016 to apprise me of the detail of his expenses, but to this day Rus has not even acknowledged my requests. I thought for a while that the capital raised from the shareholders might have been placed in an escrow account, but I am now told it was not the case.

Since the award of the first contract, all operational expenses and operational salaries were incurred in the execution of complex projects that took place some 10,000 miles from Pensacola. I will be interested to learn in detail (as maybe you will too) how an amount a third larger, and involving all of the capital raised from the shareholders, could have been spent by Rus in Pensacola for non-operational and non-productive expenses.

Someone else besides me needs to ask him.

Sincerely yours.



Marc Moszkowski
President
m.moszkowski@deepgulf.net

From: m.moszkowski@deepgulf.net
Sent: Saturday, December 23, 2017 7:37 AM
To: Tjj757@live.com
Subject: FW: DeepGulf's business and dispute

Tom,

Although you are assuming I was aware you became a member of DeepGulf's Board of Directors, I was not. I will take your word for it until the Board sends me an official notice, but it seems Rus succeeded in replacing a sitting Director by a close friend of his, which I think is quite objectionable in the middle of a serious dispute between him and me. As you will remember, I asked for the opportunity to interview you before your appointment, but you turned it down. Rus' plan, as he explained it to me when he first mentioned the possibility of your appointment, was that you would take the seat of the fourth director, not replace the third. This last event reflects Rus' bizarre way of doing business and resolving disputes.

However, I will damp my reticence and will endeavor to start this discussion with an open mind, although I will not copy Rus, with whom I categorically refuse to communicate directly any further, since he chooses his topics, forbids me to address those I think are relevant, accuses me of wrongdoing without the slightest knowledge of facts, has a penchant for insults, ignores whatever explanation I may provide, and generally drowns me in bureaucratic corporate lingo that frankly does not address the core of the problem.

By open mind, I understand you and I will refrain from assuming beforehand the other party is a crook.

Pardon me if I'm wrong, but I think I may recognize some of Rus' writing mannerism in your email. In particular, I see two mentions of the word "*authorizations*", but I fail to understand their relevance. I was the President and Chief The Executive Officer of DeepGulf, and the President Director General of Toke, a third party company (see below), and as such did not require any authorization from Rus to conduct our difficult business (nor did he care about them until I informed him in September of 2016 that I wanted him out of the company). I removed the "*Chief*" and added "*The*" in my title, since Rus stated a few weeks ago that I was, verbatim, the "*President and The Executive Officer*", a title that is apparently unique to me, worldwide.

Discussing the issues strictly in writing with the neophyte I assume you still are -- if I am to believe Rus' statements that a Director should not discuss company issues with any shareholder but another Director, and you say you became a Director only today -- is bound to be very time consuming and difficult, and also prone to misunderstanding. I propose again we discuss all the issues candidly by verbal communication. As you will have understood from the two letters I recently sent all the shareholders for whom Rus has given me an address, I am not shy about details of past events.

Also, I trust the discussion will enlighten me somewhat about plans a hear Rus has for the company, of which I know nothing, although I'm the president, executive officer, chief technologist, largest shareholder, and only promoter.

We will need to start with the genesis of the company and the history and chronology of events, without which any subsequent episode is out of context. I will also expose to you the reasons for my refusal to abide by Rus' injunctions.

My letter does provide many numbers, but I am surprised you should ask me for supporting documentation, since the gist of the letter is precisely to state that only Rus knows for sure how DeepGulf's funds were disbursed. I know what I spent, and he knows what I spent, in detail. On the other hand, I don't know the detail of what he spent.

I confirm that Toke was indeed a third party company for most of its life. You should refer to the chronology of events if you wish to understand the detail. If I may draw an analogy, a DC-8 aircraft in 1980 was not a Boeing aircraft, despite the subsequent merger of McDonnell-Douglas and Boeing. Furthermore, since it seems Vicente Ximenes never received the full payment that was promised him for his shares, the ownership of the company is actually still debatable.

Regarding Toke Oil & Gas accounts, has Rus shown you the income statements and balance sheets I had sent him for the years 2008, 2009, 2010, and 2011? Those should be a starting point. The statements were sent to him, and acknowledged by him, between late 2010 and May 2012. I am prepared to send you copies and discuss them with you, and get into more detail as we proceed.

Since to this day Rus refuses to let me see DeepGulf's accounts, there could still be discrepancies about the payments DeepGulf received from Toke. For example, for the sake of being conservative, I stated in my letter a revenue from Toke of \$1,290,105, but it could be as much as \$1,367,568.45, or even \$1,411,287.83, depending on different ways of calculating it. Until Rus agrees to let me see DeepGulf's records I will not be able to confirm which figure is the correct one. Whenever I mentioned the issue to Rus, he stated sarcastically that I'm free to come to Pensacola and have a look, a statement I find particularly disingenuous since I was kicked out of the U.S. precisely because of Rus' misrepresentation and ultimate failure to provide me with a visa.

As a preamble to a constructive analysis of cash-flows there will be a requirement to open DeepGulf's accounts to me, remotely. Again, I am DeepGulf's largest shareholder, the author of all its technologies, I developed all the business and gave it to DeepGulf (despite the fact that I never used a cent of DeepGulf's capital), I am the company's president, and still Rus believes he can muzzle me and hide the accounts from me, although he ironically expresses demands about an entity that was a third party for most of its life, but for which he has all balance sheets and income statements.

I will be very interested to learn how Rus presented the company and its business to you at the time you accepted to become a shareholder. You will have understood from my last letter that I am also interested to learn how he spent your money.

Lastly, I invite you to read again very carefully, if need be, the detail of my last two letters, which describe in great detail and to the best of my knowledge facts about the operations of DeepGulf and Toke Oil & Gas.

M

From: Thomas johnson [<mailto:tjj757@live.com>]
Sent: Friday, December 22, 2017 10:08 PM
To: m.moszkowski@deepgulf.net
Cc: rus@holdg.com
Subject: Re: DeepGulf's business and dispute

Marc

Thank you for the letter.

As you are by now aware, I am a member of the DeepGulf BOD. As such, I have an obligation to ask questions.

I come into this with an open mind. My wife and I are shareholders who bought into the company during the August 2012 round of funding. We are both very concerned about the financial state of the company, and whether it is still viable for the future.

I am in the process of looking through DG documents trying to determine timelines, obligations, authorizations, etc. I am also trying to understand the financial transactions that took place and how the DG BOD authorizations played into this.

Your letter provides many numbers. In order to become fully informed and understand what has happened, I need documentation that can explain each of your numbers through receipts, accounting records, authorizations, etc.

You state that Toke was a "Third Party" with a gross revenue of \$14,900,000. Yet the PPM my wife and I purchased our shares under lists Toke as 2/3 owned by DeepGulf with a commitment to purchase the last third from Vincente Ximenes making it a wholly owned part of DG. Can you explain these apparently different statements?

I would like to see the records showing Toke's revenue and expenses. Please provide me with the full accounting of how Toke's revenue was procured and spent. I need to see the proper documentation for this.

I look forward to working with you to resolve any lingering issues that may have arisen prior to my involvement with DG.

Please sent the financial records and any supporting documentation to my email address.

Thanks

Tom

(Rus is copied to this because this is a DG BOD related e-mail.)

Sent from [Outlook](#)

From: m.moszkowski@deepgulf.net <m.moszkowski@deepgulf.net>

Sent: Friday, December 22, 2017 10:19 AM

To: 'Thomas johnson'

Subject: DeepGulf's business and dispute

Tom,

Please find attached a new letter I wrote today regarding DeepGulf's business and dispute.

Feel free to contact me if you have any question.

Best regards.

Marc Moszkowski

President

DeepGulf, Inc.

From: m.moszkowski@deepgulf.net
Sent: Saturday, December 23, 2017 7:44 AM
To: Tjj757@live.com
Subject: FW: Letter to shareholders

Since you are the new other Director. You are mentioned in this email. No offense.

Contrary to Rus, I don't revel in secret and I have no conspiracy theory. I will communicate openly with you and the shareholders about anything of importance that relates to DeepGulf.

M

From: m.moszkowski@deepgulf.net [mailto:m.moszkowski@deepgulf.net]
Sent: Friday, December 22, 2017 12:47 PM
To: 'wblottjr@gmail.com'
Cc: 'Rus Howard'
Subject: RE: Letter to shareholders

Bill,

as you know, the letter was sent almost an hour before I received Rus' email. I may be wrong, but I would be surprised if he did not receive the letter before he sent his own email, in which he directs me not to send it.

Does Rus imply that a letter to the shareholders questioning his behavior and libelous accusations should be approved first by himself and his associates, after he accused me of misrepresentation, white collar crime, embezzlement, and other malfeasance? Am I to believe that Rus never communicated about the dispute with any of the shareholders, many of whom are relatives of his, or close friends? Didn't he ever discuss the issue with the very associate he plans to appoint as a new Director, who was therefore not on the Board at the time of the communication?

It seems, as we discussed during the phone conference earlier today, that Rus does not realize there is a serious dispute between him and me: I have all reasons to believe that his aim is to destroy the company in order to save his reputation, and the dispute prevents me from recognizing any further legitimacy in his position of Chairman of the Board. As I have stated in the past, for me to cooperate with the Board, as I have with the other Director, he first needs to step down, among other things.

M

From: Rus Howard [mailto:rus@holdg.com]
Sent: Friday, December 22, 2017 12:11 PM
To: m.moszkowski@deepgulf.net
Cc: wblottjr@gmail.com
Subject: Letter to shareholders

Dear Marc Moszkowski,

Today, in verbal communication, you stated your intent to send another email to DeepGulf shareholders.

You are hereby directed not to send any communications to DeepGulf Shareholders that have not been reviewed and specifically approved by DeepGulf Board of Directors. A Board Meeting for review and approval of your proposed communication will be held in the days between Christmas and New Year's Day.

Rustin Howard
DeepGulf, Inc.
Chairman of the Board

From: m.moszkowski@deepgulf.net
Sent: Monday, December 25, 2017 6:35 AM
To: Tjj757@live.com
Subject: Questions

Tom,

Merry Christmas to you and your family.

Am I correct in my understanding from your lack of comprehensive response to my letters and emails that you are not interested in hearing the facts about DeepGulf and Toke Oil & Gas directly from me, who know them intimately, and that you are satisfied with Rus' depiction, although his knowledge of the matter is quite superficial and often erroneous?

Am I correct in inferring that, for several years, you have discussed the issues in question with Rus, despite the fact that you were not a Director, but have no interest whatsoever in discussing them with me, now that you are my co-Director, despite the fact that I know the subject matters and Rus doesn't?

As explained to Rus and yourself, and before your time to the Director whose seat you're now occupying, Rus has made it quite impossible for me to communicate with him. However, as offered repeatedly in the past few days, I am more than willing to communicate with you, if you consent to it, although I will not be inclined to obey your diktats.

I will continue to keep the shareholders informed of the proceedings, at least those for whom Rus provided an email address.

Marc

From: m.moszkowski@deepgulf.net
Sent: Tuesday, December 26, 2017 2:16 PM
To: 'Thomas johnson'
Subject: RE: Questions

Tom,

You are wrong in stating that Toke is a wholly owned subsidiary of DeepGulf. You are wrong because you don't know. You think you know, but you don't. I am offering to explain to you why you are wrong. It will be up to you to listen, or not.

Florida law does not extend to East Timor. This being said, Toke's accounts are not a secret, but for as long as you will continue on the bullish way you will not get them from me.

My statements are facts, not "stories". You don't know the facts about DeepGulf and Toke, and neither does Rus. I do.

I take note that you don't want to hear facts from me. You're apparently satisfied with Rus' conspiracy theories.

I have requested a number of things in my letters. I still don't have any answer from you.

Stop bullying me. It is useless. And get off your high horse if you want anything from me. Put in your head that you and Rus are not my masters. We are co-directors, at the same level, except that I am the largest shareholder, the only one who ever returned a cash flow for the company, and the person who put the most money in the business. In addition, the company owes me a large amount of money.

It appears to me that you and Rus are satisfied with the deadlock. Otherwise you would act differently.

Your email forces me not to attend the meeting.

M

From: Thomas johnson [<mailto:tjj757@live.com>]
Sent: Tuesday, December 26, 2017 1:53 PM
To: m.moszkowski@deepgulf.net
Cc: rus@holdg.com
Subject: Re: Questions

Marc

Greetings from Atlanta.

As an accident investigator, I have come to rely on factual evidence over eyewitness accounts.

1. You have stated in previous correspondence that Toke was not a wholly owned part of DG. The factual evidence proves otherwise.

2. You have stated that Toke's documents, papers etc prior to DG acquiring them are not DG's property because Toke was a foreign entity. Florida statute clearly states this to not be the case.

It is easy to conclude that I may be reticent to rely on your version of events when it is contradicted by the factual evidence.

I have to rely on the factual evidence. While your stories of how DG and Toke came to be may be entertaining, unless they conform with the factual evidence, they are really irrelevant.

The central questions are still:

When are you going to return DG's property?

When is a full accounting of the \$14.9 M in Toke income and expense going to be given?

When is a report on DG's East Timor operations going to be presented?

Your previous correspondence indicates strongly that you are not voluntarily going to return DG property that is not yours. As someone who is essentially coming into this with a blank slate, it would be very easy to conclude that the information being withheld may implicate you in some way or form. I strongly hope that is not the case, but the only way I can determine that is to see the evidence.

Please return the Toke records to the DG office.

Please provide a status report on the East Timor operations.

Sent from [Outlook](#)

From: m.moszkowski@deepgulf.net <m.moszkowski@deepgulf.net>

Sent: Monday, December 25, 2017 5:35 AM

To: Tjj757@live.com

Subject: Questions

Tom,

Merry Christmas to you and your family.

Am I correct in my understanding from your lack of comprehensive response to my letters and emails that you are not interested in hearing the facts about DeepGulf and Toke Oil & Gas directly from me, who know them intimately, and that you are satisfied with Rus' depiction, although his knowledge of the matter is quite superficial and often erroneous?

Am I correct in inferring that, for several years, you have discussed the issues in question with Rus, despite the fact that you were not a Director, but have no interest whatsoever in discussing them with me, now that you are my co-Director, despite the fact that I know the subject matters and Rus doesn't?

As explained to Rus and yourself, and before your time to the Director whose seat you're now occupying, Rus has made it quite impossible for me to communicate with him. However, as offered repeatedly in the past few days, I am more than willing to communicate with you, if you consent to it, although I will not be inclined to obey your diktats.

I will continue to keep the shareholders informed of the proceedings, at least those for whom Rus provided an email address.

Marc

From: m.moszkowski@deepgulf.net
Sent: Wednesday, December 27, 2017 7:17 AM
To: Tjj757@live.com
Subject: FW: Executive Officer

Tom,

I read that you and Rus claim that I "*have repeatedly refused to provide information required of [me] as DeepGulf's Executive Officer*", and that my "*authority as Executive Officer has been suspended*".

I deduce from the above that "*the information required of [me] as ... the Executive Officer*" is therefore no longer required.

However, the suspension from my functions cannot be separated from the debt incurred with regard to my unpaid salaries since April 2013, and the reimbursement of the cash I have repeatedly injected in the company since 2005.

I am stressing again that I have made several repeated offers to talk with you about the company's numerous issues, and I have repeatedly offered to answer all your questions, without any filter, and provide all the information you may be interested in, verbally. Unfortunately, and quite strangely, you have turned down all my offers, to this day, although you continue to state quite irrationally that I "*repeatedly refused to provide information*".

I have also stressed repeatedly that in no way will I communicate with Mr. Howard, who has continually demonstrated his intent to destroy the company, and with it the capital invested by the shareholders. As stated on numerous previous occasions, Mr. Howard is the only obstacle that proscribes my communicating with the Board of Directors. A prerequisite for normalized relations is for Mr. Howard to step down, which I have stated on numerous occasions since August 2016.

The idea that Mr. Howard could demand my submission to him is absurd.

It appears Mr. Howard's design is to forbid any direct communication between me and not only you, but all of the more than 40 shareholders, a majority of whom seem to have sworn allegiance to him, despite his clear incompetence. For some reason, he seems to believe that communication with the shareholders is a monopoly of his.

He must have some serious reasons for fearing my talking with you and the shareholders so much.

I imagine you could not have overlooked by now the facts that I don't need the support of DeepGulf in any of my activities whatsoever, but on the contrary DeepGulf needs me if it is to have any future. My only reason for attempting to maintain continued communication with the shareholders, especially after I was kicked out of the U.S. in February 2017 as a consequence of Mr. Howard's incompetence (or scheming?), is a wish to protect the shareholders (who are currently not really helping me), despite the fact that I never needed, or spent, any of their capital. Nor could you have missed by now that Mr. Howard's unfounded accusations of having embezzled around a million dollars, or perhaps even more, is a stratagem to divert attention from more tangible issues.

As I wrote on several occasions, it is your decision whether to learn facts from me or to continue to only hear conspiracy theories from Mr. Howard. Don't you think it is perhaps sheer negligence on your part to refuse to listen to DeepGulf's only active officer, while you listen extensively, but exclusively, to Mr. Howard's depiction of imaginary events?

From: Rus Howard [<mailto:rus@holdg.com>]
Sent: Tuesday, December 26, 2017 5:44 PM
To: m.moszkowski@deepgulf.net
Cc: Thomas johnson
Subject: Executive Officer

Dear Marc,

At the DeepGulf Board Meeting today it was noted by both myself and by Thomas Johnson, DeepGulf's newest Board Member, that you have repeatedly refused to provide information required of you as DeepGulf's Executive Officer. Since you do not recognize the authority of the organization that grants you your authority, the DeepGulf Board can no longer support you as its Executive Officer.

Thus a resolution was made, seconded and passed that "until Mr. Moszkowski demonstrates that he recognizes the authority of the board and submits himself to it, Mr. Moszkowski cannot act as the Executive Officer of the company and is hereby suspended from that role. It is also resolved that Mr. Moszkowski be informed that his authority as Executive Officer has been suspended and that he be instructed not to represent himself to any person that he represents the company or is its Executive Officer."

This email hereby serves as you being "informed" and as being "instructed" as per above paragraph.

Best Regards,

Rustin Howard
Chairman, DeepGulf, Inc.

Best
Rus

From: m.moszkowski@deepgulf.net [mailto:m.moszkowski@deepgulf.net]
Sent: Thursday, January 25, 2018 10:04 AM
To: Rus Howard
Subject: Seventh DeepGulf letter

Rus,

please find attached my seventh letter of information to DeepGulf's investors.

Best regards,

Marc Moszkowski
President, senior founder, and largest owner

s

From: m.moszkowski@deepgulf.net
Sent: Friday, December 29, 2017 7:21 AM
To: Tjj757@live.com
Subject: RE: Executive Officer

Tom,

Although you should know by now that I will not yield to the brute force of your policy of intimidation, you still show no sign of mellowing your tone. It appears to me you have no real interest in learning facts whatsoever. I believe that if you had you would act in a more amenable fashion. Please understand that I don't request anything from you, while you want information from me, for which you are not in a position to dictate the way I am prepared to deliver it to you.

1. I have trouble understanding your statement that my *"salary and debt claims are a wholly separate issue"* from my functions within DeepGulf. Would you mind explaining how function, unpaid salaries, and debt, could be dissociated? Rus has complete knowledge of my claims, which are quite straightforward to calculate. I suggest you ask him.
2. You oddly mention that a *"your word against my word"* situation precludes any direct conversation between you and me, although it is quite apparent that you have already heard Mr. Howard's word. Incidentally, was all his communication with you (and, if I believe your email, with other shareholders) recorded and transcribed, over the several years he, you, and perhaps other shareholders discussed matters pertaining to DeepGulf out of my presence and out of my knowledge? If you are willing to have a balanced view you will need to have my word now. Isn't that precisely the essence of justice, even if this venue is not a court of law? Cherry-picking information of your choice while leaving inconvenient information out, or downright ignoring it, is more a feature of dictatorial regimes and will not help you and the shareholders understand the situation.
3. Is my statement about the removal of Mr. Howard as the chairman of the board so unilateral, really? He removed me unilaterally a few days ago, but don't you recognize my right to having stated since August 2016 that I want him to step down?
4. If shareholders want to know what happened to their investment they need to start reading carefully the last two letters I wrote them, and reply to them. I'm open to their comments and questions.
5. I read your erroneous, irrelevant, and undocumented statement that DeepGulf paid for my inheritance tax. I see you're not tiring of making preposterous accusations before learning the facts. I wonder what the point is in my trying to cooperate with someone who, like Mr. Howard, shoots first, talks later. Likewise, I read your statement about what you deem is DeepGulf's property. You know we are in disagreement on this point, for the multiple reasons I have given Mr. Howard over the course of the past few years. I am open to discussing the disagreement, and all other points, in a civilized and balanced conversation.
6. I take note of your reference to my supposed *"pleas for communication"*, which suggests some severe misunderstanding on your part. I am not pleading to communicate with you, I'm only making direct communication with me available to you. Frankly speaking, I'm starting to wonder whether I should even care to. This is not a court of justice, nor are you the judge, nor the jury. My point is not to defend myself against ludicrous accusations, it is to try to safeguard the investment made by 40 investors, apparently without much cooperation on their part, although I never spent, nor needed, their investment in the first place. I want Mr. Howard out, or at least his ownership and authority steeply diminished, not the investors'. I have stated my demand to the Board repeatedly since August 2016, which was

precisely the time Mr. Howard, who had been in possession of all relevant reports for seven long years and never uttered a single question, chose to start threatening me of retaliation and questioning my management of Toke Oil & Gas' accounts in East Timor. The coincidental timing hints to the accusations of wrongdoing being probable fabrication of his. I believe the accusations are due in part to his abhorrence of my demand that he share his interest in DeepGulf with those who made the survival of the company possible while he abandoned it after having spent all the capital. I consistently insisted that I would leave the investors' share untouched.

7. Mr. Howard did demand my submission in his last message.

I suggest again you do your duty and consent to dedicate some of your precious time to learning facts from me in the way I am proposing, in a civil, respectful, balanced, and unprejudiced manner.

M

From: Thomas johnson [mailto:tjj757@live.com]
Sent: Thursday, December 28, 2017 6:48 PM
To: m.moszkowski@deepgulf.net
Subject: Re: Executive Officer

Marc:

JOHNSON

(I am in green)

MOSZKOWSKI

I read that you and Rus claim that I "*have repeatedly refused to provide information required of [me] as DeepGulf's Executive Officer*", and that my "*authority as Executive Officer has been suspended*".

JOHNSON

Correct.

MOSZKOWSKI

I deduce from the above that "*the information required of [me] as ... the Executive Officer*" is therefore no longer required.

JOHNSON

Incorrect. The central issue of this thread is still open. You need to provide the information.

MOSZKOWSKI

However, the suspension from my functions cannot be separated from the debt incurred with regard to my unpaid salaries since April 2013, and the reimbursement of the cash I have repeatedly injected in the company since 2005.

JOHNSON

Actually your salary and debt claims are a wholly separate issue, as you are well aware.

How much is your unpaid salary, and what methodology was used to compute it?

Please provide documentation of these cash infusions over the years, how the money was spent, how the Board was made aware of these payments, etc.

MOSZKOWSKI

I am stressing again that I have made several repeated offers to talk with you about the company's numerous issues, and I have repeatedly offered to answer all your questions, without any filter, and

provide all the information you may be interested in, verbally. Unfortunately, and quite strangely, you have turned down all my offers, to this day, although you continue to state quite irrationally that I *"repeatedly refused to provide information"*.

JOHNSON

Verbal communication is great. However, it creates a "your word against my word" situation that is unacceptable given the severity and depth of the continuing disagreement. Unless our communication is documented, it is pointless.

JOHNSON

So, when? The conversation will be recorded and transcribed for company records. If this is unacceptable, then all of your pleas for communication with me have been disingenuous.

MOSZKOWSKI

I have also stressed repeatedly that in no way will I communicate with Mr. Howard, who has continually demonstrated his intent to destroy the company, and with it the capital invested by the shareholders. As stated on numerous previous occasions, Mr. Howard is the only obstacle that proscribes my communicating with the Board of Directors. A prerequisite for normalized relations is for Mr. Howard to step down, which I have stated on numerous occasions since August 2016.

JOHNSON

Unilateral conditions again? You are the one making the decision to not communicate, not him. Maybe you should consider resignation also. That resignation would be accepted provided all DG property, physical and intellectual, was returned in a satisfactory manner immediately upon notification.

MOSZKOWSKI

The idea that Mr. Howard could demand my submission to him is absurd.

JOHNSON

I expect your cooperation and compliance with our Board, not your submission to it.

MOSZKOWSKI

It appears Mr. Howard's design is to forbid any direct communication between me and not only you, but all of the more than 40 shareholders, a majority of whom seem to have sworn allegiance to him, despite his clear incompetence. For some reason, he seems to believe that communication with the shareholders is a monopoly of his.

JOHNSON

Incorrect. The shareholders have spoken, rather loudly actually. They want to know what has happened to their investment. They expect the Board member who is holding DG property to turn it over forthwith. They want a full disclosure of Toke; a full disclosure of DG accounts that require information you refuse to disclose, including but not limited to information regarding DG's payment of inheritance taxes; full and immediate access to all DG IP, etc.

MOSZKOWSKI

He must have some serious reasons for fearing my talking with you and the shareholders so much.

JOHNSON

See above.

MOSZKOWSKI

I imagine you could not have overlooked by now the facts that I don't need the support of DeepGulf in any of my activities whatsoever, but on the contrary DeepGulf needs me if it is to have any future. My only reason for attempting to maintain continued communication with the shareholders, especially after I was kicked out of the U.S. in February 2017 as a consequence of Mr. Howard's incompetence (or scheming?), is a wish to protect the shareholders (who are currently not really helping me), despite the fact that I never needed, or spent, any of their capital. Nor could you have missed by now that Mr. Howard's unfounded accusations of having embezzled around a million dollars, or perhaps even more, is a stratagem to divert attention from more tangible issues.

That is what I am trying to determine.

MOSZKOWSKI

As I wrote on several occasions, it is your decision whether to learn facts from me or to continue to only hear conspiracy theories from Mr. Howard. Don't you think it is perhaps sheer negligence on your part to refuse to listen to DeepGulf's only active officer, while you listen extensively, but exclusively, to Mr. Howard's depiction of imaginary events?

JOHNSON

It would be negligence to communicate in undocumented ways. Then again, you know that. The next move is yours. Kn to B3

M

Sent from Outlook

From: m.moszkowski@deepgulf.net <m.moszkowski@deepgulf.net>

Sent: Wednesday, December 27, 2017 6:17 AM

To: Tjj757@live.com

Subject: FW: Executive Officer

Tom,

I read that you and Rus claim that I "*have repeatedly refused to provide information required of [me] as DeepGulf's Executive Officer*", and that my "*authority as Executive Officer has been suspended*".

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M

From: Rus Howard [<mailto:rus@holdg.com>]
Sent: Tuesday, December 26, 2017 5:44 PM
To: m.moszkowski@deepgulf.net
Cc: Thomas johnson
Subject: Executive Officer

Dear Marc,

At the DeepGulf Board Meeting today it was noted by both myself and by Thomas Johnson, DeepGulf's newest Board Member, that you have repeatedly refused to provide information required of you as DeepGulf's Executive Officer. Since you do not recognize the authority of the organization that grants you your authority, the DeepGulf Board can no longer support you as its Executive Officer.

Thus a resolution was made, seconded and passed that "until Mr. Moszkowski demonstrates that he recognizes the authority of the board and submits himself to it, Mr. Moszkowski cannot act as the Executive Officer of the company and is hereby suspended from that role. It is also resolved that Mr. Moszkowski be informed that his authority as Executive Officer has been suspended and that he be instructed not to represent himself to any person that he represents the company or is its Executive Officer."

This email hereby serves as you being "informed" and as being "instructed" as per above paragraph.

Best Regards,

Rustin Howard
Chairman, DeepGulf, Inc.

Letter from DeepGulf's President to the Shareholders

29 December, 2017

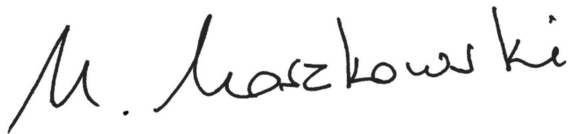
Dear DeepGulf Shareholder,

This is my third letter to the shareholders this year. I have received one reply to the first letter, and none to the second.

In the middle of a serious dispute between the two largest shareholders, Rus Howard has succeeded in discouraging the impartial third Director who, for more than a year, patiently and repeatedly acted as an intermediary and moderator between Mr. Howard and me, despite a very busy schedule. Mr. Howard has objectionably succeeded in replacing him on the Board by a very close friend and associate of his, who has refused so far to communicate with me verbally, despite the numerous offers I made him since November 17th.

Please find in the pages below copies of my last emails to Tom Johnson, the new Director, and of Rus Howard's last email to me, which informs me I am suspended as the Executive Officer.

Sincerely yours.

A handwritten signature in black ink that reads "M. Moszkowski". The signature is written in a cursive, slightly slanted style.

Marc Moszkowski
President
m.moszkowski@deepgulf.net

From: m.moszkowski@deepgulf.net
Sent: Wednesday, December 29, 2017 7:21 AM
To: Tjj757@live.com
Subject: RE: Executive Officer

Tom,

Although you should know by now that I will not yield to the brute force of your policy of intimidation, you still show no sign of mellowing your tone. It appears to me you have no real interest in learning facts whatsoever. I believe that if you had you would act in a more amenable fashion. Please understand that I don't request anything from you, while you want information from me, for which you are not in a position to dictate the way I am prepared to deliver it to you.

1. I have trouble understanding your statement that my "*salary and debt claims are a wholly separate issue*" from my functions within DeepGulf. Would you mind explaining how function, unpaid salaries, and debt, could be dissociated? Rus has complete knowledge of my claims, which are quite straightforward to calculate. I suggest you ask him.
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3. Is my statement about the removal of Mr. Howard as the chairman of the board so unilateral, really? He removed me unilaterally a few days ago, but don't you recognize my right to having stated since August 2016 that I want him to step down?
4. If shareholders want to know what happened to their investment they need to start reading carefully the last two letters I wrote them, and reply to them. I'm open to their comments and questions.
5. I read your erroneous, irrelevant, and undocumented statement that DeepGulf paid for my inheritance tax. I see you're not tiring of making preposterous accusations before learning the facts. I wonder what the point is in my trying to cooperate with someone who, like Mr. Howard, shoots first, talks later. Likewise, I read your statement about what you deem is DeepGulf's property. You know we are in disagreement on this point, for the multiple reasons I have given Mr. Howard over the course of the past few years. I am open to discussing the disagreement, and all other points, in a civilized and balanced conversation.

6. I take note of your reference to my supposed "*pleas for communication*", which suggests some severe misunderstanding on your part. I am not pleading to communicate with you, I'm only making direct communication with me available to you. Frankly speaking, I'm starting to wonder whether I should even care to. This is not a court of justice, nor are you the judge, nor the jury. My point is not to defend myself against ludicrous accusations, it is to try to safeguard the investment made by 40 investors, apparently without much cooperation on their part, although I never spent, nor needed, their investment in the first place. I want Mr. Howard out, or at least his ownership and authority steeply diminished, not the investors'. I have stated my demand to the Board repeatedly since August 2016, which was precisely the time Mr. Howard, who had been in possession of all relevant reports for seven long years and never uttered a single question, chose to start threatening me of retaliation and questioning my management of Toke Oil & Gas' accounts in East Timor. The coincidental timing hints to the accusations of wrongdoing being probable fabrication of his. I believe the accusations are due in part to his abhorrence of my demand that he share his interest in DeepGulf with those who made the survival of the company possible while he abandoned it after having spent all the capital. I consistently insisted that I would leave the investors' share untouched.

7. Mr. Howard did demand my submission in his last message.

I suggest again you do your duty and consent to dedicate some of your precious time to learning facts from me in the way I am proposing, in a civil, respectful, balanced, and unprejudiced manner.

M

From: m.moszkowski@deepgulf.net
Sent: Wednesday, December 27, 2017 7:17 AM
To: Tjj757@live.com
Subject: RE: Executive Officer

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M

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Sent: Tuesday, December 26, 2017 5:44 PM
To: m.moszkowski@deepgulf.net
Cc: Thomas johnson
Subject: Executive Officer

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This email hereby serves as you being "informed" and as being "instructed" as per above paragraph.

Best Regards,

Rustin Howard

Chairman, DeepGulf, Inc.

Letter from DeepGulf's senior founder and largest shareholder to the Shareholders

4 January, 2018

Dear DeepGulf Shareholder,

This is my fourth letter of information to the shareholders since November 2017.

Following Mr. Howard's campaign of defamation and intimidation against me, I have little alternative but to continue disclosing facts to the shareholders, despite Mr. Howard's formal instruction not to, and his withholding from me the email addresses of 18 of the 42 shareholders.

In this letter I will retrace the history of Mr. Howard's business relationship with me since 2005. The company was incorporated in 2005, Mr. Howard and I each owning 50% of the stock.

Chronologically, since the founding of DeepGulf 13 years ago, during which period I have been the company's only source of business development, contracts, technology, research, and project management skills, Mr. Howard:

1. had me focus on the development of the company after I quit, specifically for that purpose, a job that returned to me a net \$1,500 per day after benefits and tax;
2. didn't quit any of his existing professional activities;
3. had me turn over all my intellectual property, patents, methods, trade secrets to the company;
4. gave nothing of the sort to the company;
5. let me support the company financially for two and a half years, spending in the process \$100,000 of my own funds;
6. didn't pay me any salary until after I obtained a contract promise overseas, for which I had paid for all the development costs out of pocket;
7. when he finally paid me a salary, arranged for it to be 20% lower than my annual tax payments;
8. as soon as I landed a contract, paid himself and his secretaries substantial salaries without ever discussing the terms with me;
9. started raising capital only after I obtained the first contract promise, when capital had become quite superfluous;
10. selected most investors among his friends and close relatives, apparently seeking to gain control over the company despite his minority stake;
11. did not use any of the capital to reimburse me of the initial \$100,000 of expenses;

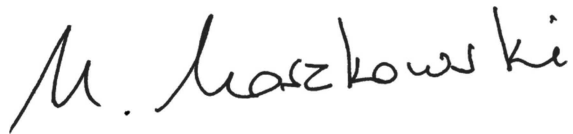
12. spent all the cash-flow I generated from the three overseas contracts — after all operational expenses including my salaries — on expenditure for which he refuses to provide detail and justification;
13. spent all the capital raised from investors on expenditure for which he refuses to provide detail and justification;
14. had me work for the company without any salary for as long as 8 years, not only without any support from him, but with him acting quite often against company's interests;
15. had me inject an extra \$125,000 of my personal earnings in the company;
16. attempted to defraud me of patent inventorship;
17. after he all but abandoned the company and me to our own devices, and announced he wouldn't work for the company without a salary, let other people, hereafter called the sponsors, pay for my living and traveling expenses for more than 2 years, but refused to share any potential reward with them;
18. neglected to pursue a permanent visa petition for me, despite his assurance that it had been virtually obtained, with the consequence that I had to abruptly leave the United States in February 2017;
19. when I finally told him, after 12 years of his taking advantage of me, the company, and its sponsors, that, as a consequence of his total inactivity and lack of support and interest, I desired him to transfer at least 2/3 of his stock in the company to the active sponsors, suddenly found an issue with the salary complement the foreign client company had paid me for the additional difficult, demanding, and out-of-scope work I had done for that company to enable the contracts, ignoring the facts that I was the general manager and the president director general of that company; the work I did for that company was not compensated by DeepGulf (incidentally, all that salary complement was used to pay for tax); the salary complement only became an issue for Mr. Howard seven years after he received the relevant documentation from the foreign company, but coincided with my letting him know I desired him to transfer some of his stock to the active sponsors;
20. when I offered to explain facts to him, screamed at me in a great state of agitation that I *"would never be his teacher"* and he *"would never be my pupil"*, both statements I found particularly disturbing, since I know the business and its realities intimately, and he doesn't;
21. to add insult to injury, eventually accused me of having embezzled a million dollars from DeepGulf;
22. in the middle of the current serious dispute between him and me, used threats of legal action to intimidate the impartial director who had acted as a faithful mediator between him and me, with the consequence that said director did not seek reelection; Mr. Howard then replaced him by a close friend and associate of his who has consistently refused to candidly discuss current issues with me;
23. continues to ignore the realities of the business and of the structure of the foreign client company, despite my repeated attempts to explain them to him;
24. continues to make unreasonable demands from me, without acknowledging the close to \$800,000 debt before interest the company owes me;

25. demoted me from the *bona fide* function of “*Chief Executive Officer*” to the quite unusual “*Executive Officer*” only, and finally announced that he suspended me from that function, with the support of some shareholders and the new director;
26. seemingly reported me to the IRS for the salary complement I received from the foreign client company more than 7 years ago. Although such compensation would have been subject to U.S. income tax, had I been a U.S. citizen or a permanent resident, my status of non-resident, non-immigrant alien did not require me to pay income tax in the U.S. for any foreign income received for work done overseas, the matter being an issue between the country of my citizenship and the country of the foreign company, an issue I duly addressed 7 years ago.

It seems Mr. Howard’s professional specialty consists in trying to use the knowledge of corporate statutes and boardroom jargon he acquired from the College of Business at Cornell University to dissimulate his own lack of competence while trying to divert to his sole benefit the potential rewards otherwise due to the talent, entrepreneurship, inventorship, self-reliance, and hard work of others, in a quite predatory and parasitical manner.

As in the past, I am ready to discuss these issues with you at your convenience.

Sincerely yours.

A handwritten signature in black ink that reads "M. Moszkowski". The signature is written in a cursive, slightly slanted style.

Marc Moszkowski
Senior founder and largest shareholder
m.moszkowski@deepgulf.net

From: m.moszkowski@deepgulf.net
Sent: Thursday, January 4, 2018 10:53 AM
To: Tjj757@live.com
Subject: Fourth DeepGulf letter
Attachments: Letter from DeepGulf's President 18-01-04.pdf

Tom,

I am in receipt of the email sent by Messrs. Howard and Johnson to you last night. They apparently consider themselves alone to be the Board of Directors, after having manipulated its composition to their advantage, despite the well-known fact that I am also a Director, the largest owner of the company, and its senior founder.

You will appreciate that after the authors of the letter have all but excluded me of any Board resolution, they continue to deny me the right to communicate with you. You will also note that 18 of your 42 email addresses are still refused to me, which in effect seriously dent my ability to freely respond to the letter.

Also, please find attached the fourth letter I had originally intended to send you tomorrow.

Although I note that Messrs. Howard and Johnson finally took the dispute to the general arena, I am disappointed by their letter's level of serious inaccuracy and even plain erroneousness. I will endeavor to address each paragraph below.

- The information I received from the Board on Dec. 26, 2017, was that I was suspended as the "*Executive Officer*". There was no mention of the function of "*President*". The board seems to believe that it is in the power of two directors to decide the fate of the third at their discretion.
- I suggest we rename the "*Board of Directors*" and call it from now on the "*Soviet of Directors*".
- I take note again of the serious but unfounded defamation I am subjected to. I have offered to fully discuss the credibility of Messrs. Howard and Johnson's alleged "*credible evidence of financial and fiduciary wrongdoing*" for over a year, but to no avail.
- I don't see how my "*correspondence to you [could be] an attempt to distract from the issues at hand*", since I am presenting all the issues to you so that you be fully aware of the situation. On the contrary, I believe the defamation and intimidation campaign against me is indeed an attempt by Mr. Howard to divert attention from his own management of the company's funds.
- The fact that I am indispensable to DeepGulf is far from being an "*illusion*", since I am in possession of all the intellectual property I devised for several years without receiving any salary. We should be extremely cautious about Mr. Howard's illusory claim that he can successfully develop any project for DeepGulf without me.
- I reiterate that although Messrs. Howard and Johnson demand information about Toke from me electronically, they still contend, quite ironically, that if I want to see the DeepGulf's accounts I will need to travel to Pensacola in person and will not be allowed to take a copy, despite the fact that I have no visa to travel to the United States for professional purposes, and I am obviously entitled to keep accounts of my own company.

- Contrary to the letter's wording, it is plain falsification to state that "*the Board sent Mr. Moszkowski to East Timor to find an opportunity for DeepGulf to employ its technology*". Although I had been induced by Mr. Howard to give all my existing intellectual property and technology to DeepGulf, I was not salaried by the company at the time and I decided on my own to travel to East Timor, a trip for which I paid all the expenses myself. It seems quite obvious to me that I did not need Mr. Howard's authorization to go on a trip on my own dollar while not being salaried by the company.
- I agree that "*recently appointed Director Johnson has been attempting to secure the records of Toke Oil and Gas*" electronically, while I have been attempting for over a year to secure DeepGulf's records, which Mr. Howard has refused to me. Mr. Howard is the reason for the current standoff.
- The dates provided for the acquisition of Toke are erroneous and show a poor understanding of the reality of facts. I have repeatedly offered to discuss the matter with Mr. Howard, and then with Mr. Johnson, but my offers were systematically turned down. Now that third parties are reading my comments, I will provide more explanations: DeepGulf did not become the sole owner of Toke Oil & Gas in 2010. In October 2010 DeepGulf acquired 1/3 of Toke, for which it paid \$1. DeepGulf became the owner of another 1/3 at the end of December 2012, for \$100. As for the last 1/3, although its owner had signed an agreement to sell his interest for \$100,000 at the end of 2012, he had only received \$50,000 as a loan from me and Mr. Howard, and says he never received the balance. Furthermore, it appears now that Mr. Howard's resolution of 2013 regarding the Board of Directors of the acquired company was not legal according to East Timor law, and the company ceased to exist anyhow when annual fees failed to be paid to the government of East Timor.
- This being said, it should be of interest to you to learn why the first 1/3 cost \$1, the second \$100, and the third \$100,000, when the timing of the third transaction happened after Toke ceased receiving revenue, while the first transaction happened when Toke was in full operation. I am prepared to answer your questions about the subject verbally.
- I take it from the letter that Messrs. Howard and Johnson are now suggesting that I misappropriated an extra \$100,000, on top of the million they already claimed elsewhere I had embezzled. There is apparently no limit to their uneducated and defamatory allegations.
- Messrs. Howard and Johnson demands for any information and asset from me cannot be dissociated from the requests for information I have made for months and the debt owed to me by the company.
- Contrary to the claim expressed in Messrs. Howard and Johnson's letter, the detail of the salaries paid by Toke Oil & Gas to its directors had been fully described in income statements and balance sheets sent to Mr. Howard in 2010, 2011, and 2012.
- I continue to fail understanding how the use I made of my salary to pay for taxes could be any concern of Messrs. Howard and Johnson's. Their obsession with the fact that for years I used the largest part of my personal income to pay for taxes on my house makes me suspect they may have devised some unreasonable plot against it.
- Contrary to Messrs. Howard and Johnson's assertion, they did not "*discover*" the salary complement paid to me by Toke for the work I did for Toke: I volunteered the information and had anyway made the salary information fully known to Mr. Howard more than 7 years ago.
- The statements made by Mr. Howard in his petition for a permanent visa are his full personal responsibility. One of Toke's directors had indeed ceased to have any operational relationship with the company in 2008, which does not mean he ceased to be an owner or ceased to take a salary as a director. It took two more years for me and the third owner to finally get this uninvolved and rather indelicate director to sell his shares to the third owner.

- All attempts by Messrs. Howard and Johnson to receive information from me will continue to be contingent on information from DeepGulf being made available to me.
- I continue to fail understanding how Messrs. Howard and Johnson could claim any right to my technology and intellectual property, since for a period of 8 years I received strictly no salary for my work. Such intellectual property could only be transferred to the company after the company's debt to me has been fully paid. I believe they must understand this plain fact, which would explain the reason for their claiming I embezzled an equivalent amount from the company, which would conveniently offset the debt.
- Although I have made no secret of my intention to conduct all my future business without Mr. Howard after he demonstrated his questionable business behavior, I have also systematically asserted on numerous occasions that it was my intention to involve the existing investors at the same level they now enjoy in the company, although I did not spend any of their capital for my own expenses. Messrs. Howard and Johnson are attempting to alter the reality of my statements. As the largest owner of the company, I am curious to learn from Messrs. Howard and Johnson the detail of their "*steps to secure DeepGulf's technology and business opportunities*".
- I have indeed been granted one more patent in 2017, but since I have been on my own without any support from the company and have not received any salary for several years, it is hard to understand how the patent could be any property of the company's. Messrs. Howard and Johnson seem to believe they are systematically entitled to other people's property without compensation.
- It is important to keep in mind that, unlike Mr. Howard, I have never derived any financial benefit from the company that I had not created.
- Contrary to the letter's assertion, I have not "*made numerous charges of fraud and financial irregularities against Director Howard*". I have made candid statements and I have asked candid questions, while Mr. Howard has made several serious direct accusations of fraud against me. I am not the same kind of man he is. I do not accuse people before I fully comprehend the facts.

Best regards,

Marc Moszkowski
Senior founder and largest owner

From: Thomas johnson <tjj757@live.com>
Sent: Wednesday, January 3, 2018 7:35 PM
To: Thomas johnson; rus@holdg.com
Subject: Letter to DeepGulf Shareholders

Dear DeepGulf Shareholder,

Again, many of you find yourself in receipt of a letter from Mr. Moszkowski, President of DeepGulf. Mr. Moszkowski has been suspended as President of DeepGulf, and directed by the Board not to send any communications to you that have not been reviewed and approved by the Board.

Mr. Moszkowski is under investigation by the Board of Directors for numerous issues. The Board has very credible evidence of financial and fiduciary wrongdoing by Mr. Moszkowski. His correspondence to you is an attempt to distract from the issues at hand, and to create the illusion that he is indispensable to DeepGulf.

You may or may not know that the Board oversees the keeping of DeepGulf financial records for its activities in the United States. Such records are kept by an independent bookkeeping company here in Florida.

Mr. Moszkowski has inferred misappropriation of funds, specifically by Director Howard. The Board adamantly denies this. As such, while generally companies do not open their books to individual shareholders, any shareholder who wishes to review the books that were under Director Howard's supervision may do so. Furthermore, the Board will instruct our bookkeeper to open them up to you and answer any questions you may have. If you would like to go further, you may conduct an independent audit of our books subject to a few conditions such as: the records remain on premises and you may not take a copy.

A brief review of the history of Toke and DeepGulf.

The Board sent Mr. Moszkowski to East Timor to find an opportunity for DeepGulf to employ its technology, (Board Meeting Minutes Oct '07) and resolved to reimburse him for expenses incurred in doing so. Upon his return he told the Board that East Timor law prevented DeepGulf, as a US corporation, from contracting with the Government of East Timor. The board sent him again to East Timor to set up a DeepGulf subsidiary so DeepGulf could operate in East Timor and obtain projects there. (Board Meeting Minutes Feb '08)

When Mr. Moszkowski returned from his second trip to East Timor, he informed the board that we had a contract and that he had set up a subsidiary (Toke Oil and Gas) as 2/3 owned by East Timor citizens and the last third was held in his name. At the time we believed his ownership of Toke was for the benefit of DeepGulf. We now believe that he set it up to extract money for himself out of DeepGulf's projects in East Timor.

Recently appointed Director Johnson has been attempting to secure the records of Toke Oil and Gas. The Board has been in a protracted dispute with Mr. Moszkowski over the nature and substance of Toke's relationship with DeepGulf. When DeepGulf Board demanded the details of all Toke transactions, Mr. Moszkowski presented the theory that Toke is an independent "third party", independent of DeepGulf, independent of Board supervision, and independent of United States or Florida law.

Subsequently, DeepGulf purchased Toke shares in stages and in 2010 became its sole shareholder. However, Mr. Moszkowski is currently claiming that the sale by one of the East Timorese individuals was not fully completed. DeepGulf has a bill of sale for the purchase of the last 1/3 of Toke Oil and Gas for the price of \$100,000 from one of the East Timor owner/Directors. DeepGulf disbursed the funds as per Mr. Moszkowski's instructions, he being the sole negotiator of the transaction. We do not know by what theory Moszkowski now claims the transaction is not complete, and we question what happened to the \$100,000 paid.

Mr. Moszkowski also claims that as a foreign entity, any and all records relating to Toke activity prior to DeepGulf's acquisition is proprietary and his alone. The Board disputes this.

While the reimbursements and salaries for DeepGulf's operation in the United States are well documented, the facts are quite different for its subsidiary Toke Oil and Gas.

As stated, Mr. Moszkowski has been the sole custodian of Toke records and has provided only summary data. The Board has repeatedly asked for a detailed record of the transactions used to create the financial summaries. The financial summary provided by Mr. Moszkowski leaves many unanswered questions.

Mr. Moszkowski stated in his "Letter from DeepGulf's President to the Shareholders" dated 19 November, 2017, that Toke had revenue of \$14.9 Million. He also states that his salary as President Director General is \$345,000 and that the other two Directors were paid in excess of \$950,000. At no time did the DeepGulf Board review or approve any of this, and at no time has a detailed accounting of the funds been provided to the Board.

Mr. Moszkowski freely admits to paying himself \$345,000, despite Florida Affiliated Party laws, to pay his inheritances taxes on his family estate in Provence, France (Board conversation Nov 2017).

When we discovered the \$345,000 paid to him we advised him that this compensation was not approved by the Board. Mr. Moszkowski reiterated his claim that Toke, as an independent offshore company, can pay its people what it wants and does not need DeepGulf approval to do so. He ignores that Toke is DeepGulf's wholly owned subsidiary. He believes that Toke is exempt from Florida Law and its Foreign Entity acquisition statutes. More importantly, it is not jurisdiction over Toke, but jurisdiction over DeepGulf and its President, Mr. Moszkowski, that makes it subject to Florida Affiliated Party statutes. (see Florida Code Title XXXVI 607.0901 and 607.1115)

DeepGulf attempted to secure United States permanent visa for Mr. Moszkowski. The document submitted to the United States government for that purpose, the EB1C, details information about the sale of Toke to DeepGulf. The EB1C documents that one of Toke's East Timorese Directors ceased to have any relationship with Toke as of August 2008. Further, Moszkowski states in email documents that this same director was paid \$50,000. That leaves in excess of \$900,000 in salaries to the remaining two Directors unaccounted for, one of those Directors being Moszkowski.

Again, the Board cannot emphasize enough that repeated attempts for information regarding these matters has been vigorously rebuffed.

Mr. Moszkowski has repeatedly threatened, despite his non-compete agreement and his fiduciary duty to the company, to leave DeepGulf, take its technology, and its business opportunities and pursue them himself

either in a new offshore entity or working for a competitor. While we are taking steps to secure DeepGulf's technology and business opportunities, Mr. Moszkowski maintains that the Intellectual Property on the DeepGulf computer assets in his possession are his, and his alone, despite the Intellectual Property agreement signed by Moszkowski.

It has also come to our attention that Mr. Moszkowski has applied for and been granted a patent issued in his name for technology developed directly for, and applicable in DeepGulf's projects in Indonesia and East Timor. We believe that this and other patent applications filed by Moszkowski are, and will prove to be, the property of DeepGulf and not Mr. Moszkowski.

In attempts to distract you and the board Mr. Moszkowski has made numerous charges of fraud and financial irregularities against Director Howard. Again, the Board will grant any shareholder the opportunity to review and audit DeepGulf's financial records.

Mr. Moszkowski has been suspended as President of DeepGulf and is not to send communications to shareholders that have not been reviewed and approved by the Board. Unfortunately, we cannot prevent him from sending them in defiance of the board.

The DeepGulf Board is working to secure property, business opportunity, and rights for your company, DeepGulf. We hope that you will be patient as we work through the process. We do not intend to pepper your inbox with vain claims or red herring accusations. If you want to know more, please feel free to contact your board. If you are interested in knowing all the details, we invite you to participate. The Board can name you to the committee that is investigating these issues. You will be made privy to all communications and information and can advise the Board on appropriate courses of action. You do not need to be a board member to participate.

Thomas Johnson tjj757@live.com

Rus Howard rus@holdg.com

Sincere Regards

DeepGulf Board

Sent from [Outlook](#)

Letter from DeepGulf's senior founder and largest shareholder to the Shareholders

8 January, 2018

Dear DeepGulf Shareholder,

This is my fifth letter of information since November 2017. It is sent to the 24 shareholders for whom I have an email address, out of 42. Like the previous letters, it is motivated by my desire to fulfill what I believe should be your curiosity to learn the facts behind the development of the company. Despite my repeated attempts for a decade to describe those facts to Mr. Howard, I don't think he ever had much interest for them and I think he prefers to mull over his own imaginary version. I also believe he doesn't have enough time on his hands to really focus on complex issues. If there is one lesson I learned from this adventure, it is to never engage in a business venture with someone who has not only one, but several hobbies.

This letter is quite long, but a lot has happened since the company was founded 13 years ago. Incomplete or inaccurate knowledge of DeepGulf's activities would unavoidably lead to imperfect assumptions, as has been exemplified recently quite profusely.

I have arranged the letter as follows:

1. *From the founding of DeepGulf in 2004 to the first contract in 2008*
2. *The three contracts in East Timor: 2008 to 2012*
3. *The East Timor natural gas delivery project*
4. *The starving years: 2013 to present*
5. *Capital requirements*
6. *The technologies behind the projects*
7. *A possible future*

You may want to click on the links to navigate the letter.

1. From the founding of DeepGulf in 2004 to the first contract in 2008

In 2004, in the aftermath of Hurricane Ivan, I met with Mr. Howard for the first time and chose him as a business partner because of his vaunted ability to raise any kind of capital I needed. That was the only reason. There was no other. I did not need any technical support, and I did not need any business guidance. I resided in Houston at the time and had savings earned from quite profitable consulting jobs done for offshore construction companies, which returned to me between \$1,000 and \$1,500 a day, net after tax. I moved to Pensacola in September 2006 to get closer to the company, but continued to work from home.

Mr. Howard and I incorporated the company in 2005 on a 50-50% basis, although I gave disproportionately more to the company than he did, a fact that was of some concern to me, but I still trusted his integrity. I very soon became quite impatient with Mr. Howard's inactivity in raising funds. For 2 ½ years he did very little, and I was left almost alone to work on the development of the business, and fund it out of my own savings. Then, in October 2007, a group of consultants in East Timor, who were interested in a large ultradeepwater pipeline between the gas fields of Sunrise and Troubadour and Timorese shores, found my website on the net and invited me to come to Timor. The website was mine, paid for with my own funds, and operated by me. I still had no salary at the time. I consequently traveled to Timor through Australia, which cost me about \$6,000 of my own money for a round trip of several weeks, and started doing engineering for pre-projects, for which my Timorese partners and I obtained a first contract in early 2008.

As soon as a contract promise had been secured, Mr. Howard started raising money from investors, but, unbeknownst to me, mostly from friends and close relatives. I signed the documents he asked me to sign in the process, but, had I fully understood what he was doing, I would have raised some serious objections: raising money for risky overseas business from wealthy investors is one thing, raising it from lower middle class relatives is another, and, furthermore, raising money from close friends and relatives of his would tend to put me in a lopsided situation in case of a future dispute, which is verified today.

It so happens that, apparently, the capital raised by Mr. Howard was not spent to pay for my operational expenses, nor those of my business associates in Asia, those expenses amounting to substantially less than the cash-flow I generated.

2. The three contracts in East Timor: 2008 to 2012

Between 2008 and 2010, I negotiated, as the president director general of the Timorese company, Toke Oil & Gas (a company that was not owned by DeepGulf), three contracts with not only the Government of East Timor but also a consortium of ten large Korean corporations led by Samsung. The total contract value was \$14.9 million.

The contract signed between Toke Oil & Gas and DeepGulf stipulated that DeepGulf would receive 10% of the main sub-contractor's receipts, and Toke 5%. In the end, DeepGulf received between 13.10% and 14.35% of the main sub-contractor's revenue, depending on what DeepGulf's actual receipts were, which Mr. Howard has failed to confirm to me. By the end of the last contract, DeepGulf had received between \$307,000 and \$428,000 more than the contractual obligation Toke Oil & Gas had toward DeepGulf. In addition to being the president director general of Toke Oil & Gas', I was also the president of DeepGulf's, and I systematically

endeavored to maximize the payments to DeepGulf, contrary to Mr. Howard's uninformed accusations of wrongdoing. In real life, so-called "*conflicts of interest*" only apply to people of sub-standard ethics.

Although I didn't really have a choice then, one of the key reasons for operating in an insulated fashion, with DeepGulf being a sub-contractor to Toke, instead of being a contractor to the Government, was that it would have been absolutely reckless at the time to unnecessarily expose our young company to any unforeseen liability in the strange and politically unstable environment of East Timor, which at the time was rife with violence: tens of thousands of refugees were camping on the streets, U.N. forces patrolled every corner of the island in search of rebel soldiers, and an attempted coup d'état saw an assassination attempt on both the President and the Prime Minister less than a month before the contract was signed. The President was shot in the lungs and seriously wounded, which left him incapacitated in a Darwin hospital for weeks. Two of his assailants were shot dead. I elected to take the risk of operating in Timor in a personal capacity, and in so doing I was well advised, as future legal and contractual disputes proved on several occasions, on each of which I was vindicated. The main rationale was to avoid exposure to the demands of the international sub-contractors if for any reason, economic, contractual, or political, the client hadn't paid his invoices. Being a sub-contractor itself, DeepGulf had no liability whatsoever, except to me as an employee. Ten years later, it is of course tempting for Mr. Howard, from the comfort of his office, to ignore those facts, and to write his bizarre conspiracy theory in which I am the convenient villain, but directly exposing DeepGulf in East Timor at the time would have been seriously ill advised.

On another level, while I was expatriated in the dangerous and remote country I just described, DeepGulf paid me between \$10 and \$15 an hour, net, for the extraordinarily difficult tasks I was discharging 10,000 miles from home in an exceptionally punishing and unsafe environment, a substantial part of the time offshore. I had full responsibility over nearly \$15 million of contracts and sometime over more than 100 workers, and worked half a dozen jobs seven days a week without a single day off in a decade. That miserly salary was less than my tax obligations. How could this fact escape Mr. Howard's notice is beyond my understanding. I think it didn't, though. It seems to me that Mr. Howard was apparently concocting that I should generate a large cash-flow for him to spend on whatever expenses he saw fit, while I would be paid \$10 an hour and would be jailed for a default to pay tax, or would lose my only house altogether. How he could believe for a second that his scheme would succeed is beyond my comprehension. More importantly, had I known his design, I would have immediately resigned before signing the first contract and before the first dollar was raised from investors, and in the process I would have earned about \$1,250,000 in extra personal income. Again, I never needed the company, technically or financially, for any of my work in Timor, or elsewhere, but so far DeepGulf has cost me up to two million dollars, depending on whether or not I consider the 8 years I worked for free for the company.

However, Mr. Howard is now quite extraordinarily complaining that I did not ask for his permission to receive a salary complement in Timor for the additional work done in Timor out of the scope of DeepGulf's. It is a matter of course that I did not ask for any authorization from him regarding the management of a company that was not a subsidiary of DeepGulf when the events occurred, and later became a partial subsidiary as a favor to DeepGulf and as a convenient conduit for making funds available to the last Timorese director, and also for facilitating a U.S. visa petition. For one thing, the issue of my living expenses and salary complement was none of his concern, and for another he was totally incompetent in the conduct of the projects, while unfortunately I never meddled in his management of DeepGulf. I realize now that I should have.

The figure for my Timorese salary was provided in my first letter.

As you know from my other letters, the three projects returned to DeepGulf a substantial cash-flow, after all my operational and salary expenses. That cash-flow was apparently used exclusively by Mr. Howard.

3. The East Timor natural gas delivery project

In the course of the first project, I started working on a practical solution to deliver natural gas to the government of East Timor in a way that would be both practical and economical. This arose from a concern that, since I thought the ultradeepwater pipeline was not feasible, an alternative needed to be devised if the country's electrical generators were to be affordably supplied with fuel.

After four years of design and submissions, a Memorandum of Understanding was signed in May 2012 by the Prime Minister and me, to the effect that we would develop a natural gas delivery system for the Government. The Memorandum had a 6 months validity, which was extended several times. Although the Memorandum was a huge achievement at the time, things became difficult a few months later when it appeared that an official to whom I had refused to pay a bribe in 2010, and his superior, the Secretary of State for Natural Resources, soon to become the Minister for Petroleum, started interfering negatively with the project. The indelicate official, who later become the head of the national oil corporation, soon started demanding a disproportionate share of the potential contract, which would have made the raising of working capital close to impossible, and, on October 1st, 2012, the Timorese political representative and director of Toke Oil & Gas started to write a series of strong press articles, taking aim at the two individuals.

It was not for me to judge after the fact the author of the articles, who had his reasons for doing what he did, however obscure to Mr. Howard. Yet, despite the fact that the articles were a consequence of the attempts to obstruct the contract and not the opposite, Mr. Howard has accused me ever since, without a shred of evidence, and contrary to basic common sense, of having written the articles myself, when in fact I only translated them into English from the original Tetun language, a few days after their publication. I had been in Sydney, Australia, on business, when the articles were written and released. Although the technical material in the articles was based on papers I had written, the political material was of course not mine.

In addition to disingenuously accusing me of having written those articles, which were written in defense of our interests, not against them, Mr. Howard, without any direct evidence and without the slightest knowledge of the events (not that it should have been any of his concern anyhow), has also irrelevantly accused me several times of having fought personally with, and raised my voice at, the Minister for Petroleum. I never did any of that, of course, and the only person I fought with was the very individual I had refused to bribe two years prior, who was then attempting to force me to resume the marine operations I had put in weather standby, for obvious reasons of safety, in dangerous weather and with the endorsement of the British surveyors. My refusal to abide by the individual's life threatening demands had to be vigorously expressed, and it was (incidentally, I was diagnosed about ten days later with an advanced case of Papuan malaria, and hospitalized in-extremis upon returning home to Pensacola; one way the Timorese recognize that strain of malaria is that it makes its victims quite irascible). Marine operations were successfully resumed at the time of my choice.

In the end, despite the bribe-thirsty individual having promised never to allow the payment of weather downtime, the client paid all his dues. I take the opportunity here to stress that I had negotiated the three contracts in such a watertight manner that not a cent remained unpaid by our clients, who were not only the government of East Timor, but also a consortium of large Korean companies, led by Samsung, no less, however hard they repeatedly tried to eschew payments.

Anyway, the fact was that at the time the Memorandum of Understanding was jeopardized for political reasons.

Mr. Howard became disoriented when the situation changed, which I can understand, although to this day I don't understand his reactions. I was in Timor at the time I told him of the event, and his immediate reaction was to turn down my calls for several days, which I don't think was very constructive, nor very mature or responsible: Mr. Howard was my only lifeline to the outside world and that single lifeline was consequently severed. Then Mr. Howard became apparently obsessed with my refusal to let him conduct on his own terms his so-called "*due diligence*" in Timor. His plan was to come to Timor unannounced to talk to the wrong people. He wanted, quite irrationally, the very people who were opposed to the project to confirm the project was going ahead, although these people were not even party to our Memorandum of Understanding. He also wanted me to step aside and let him freely do as he wanted, which was tantamount to allowing the bull in the famous china shop. Not only would such an uncoordinated action have been a waste of time and resources, it would also have been seriously counter-productive. Anyway, the wishful thought that he could meet at will with the Prime Minister, who had signed the Memorandum, or any other Minister for that matter, was unrealistic, or even childish at best. To see the Prime Minister for half an hour I sometime had to wait six weeks, and sometime even longer, and the meeting would always be granted without much more than a few minutes notice (and sometime was cancelled at the last moment). The first reasonable "*due diligence*" should have consisted in Mr. Howard accepting to sit down with me to devise and discuss alternatives, which he never agreed to do, instead of trying to bypass me altogether and ignore the reality of the situation because it didn't suit his existing plans anymore. Adaptability to a changing environment is one of the signs of real intelligence.

I advocated patience and constant lobbying with various political actors, which is precisely what was done during the next several years. The political landscape in East Timor has changed, the Prime Minister is now another man, the Petroleum Minister has been retired, and our nemesis, the head of the national oil company, has seen his prerogatives reduced while preeminence was given to a supporter of ours.

4. The starving years: 2013 to present

In April 2013 DeepGulf stopped paying me a salary. I understood that all the capital was gone, which was strange to me but I believed it. At the time, according to calculations I ran later, there should have been in excess of a million dollars in the bank accounts, including the capital raised from investors. I have no idea where the money went, and Mr. Howard refuses to tell me. At that time I started partly self-supporting my activities and the business.

For a few months, DeepGulf continued supporting at least some of my expenses, but by the end of 2014 it had all but stopped to, although I had continued to inject my personal consulting earnings in the company. I am a frugal person and a self-contained professional, and I can live

and work on \$100 a month, which I have done ever since. I don't need luxuries, I work all the time, and, to give an example, my car is a \$1,500 domestic vehicle manufactured 22 years ago (Mr. Howard later appropriated the car from me, taking advantage of my being a non-resident alien). Despite the dire straits I was in, I have never stopped working a single day and I stay in constant relation with my Asian partners.

I think the capital should have been kept to support the company in times of hardship, but unfortunately it was not. From 2014 on, the people I call the sponsors (two of them are DeepGulf shareholders, three are Australian, several are Korean, and some are Timorese and Indonesian), paid for all my living and traveling expenses, airfare and accommodation for months on end in Korea, Timor, and Indonesia. Additionally, my European clients, for whom I did several consulting missions between 2008 and 2014, have paid for several of my trips to Asia.

When traveling abroad, my meals were provided by the sponsors I was visiting, but when the sponsors were from a different country my food budget would not allow me to have more than one meal every other day, and a frugal one at that (and no breakfast, of course, excepting free instant coffee). My partners in Indonesia and Korea commented each time I visited them that I had lost weight quite dramatically, and inquired whether I was ill. I could of course not tell them that I did not have enough food money, while negotiating billions of dollars of business, and that I subsisted from my single meal every other day to the next on free hotel room sugar bags. In the end, I lost 45 lbs. on this forced diet while working non-stop for DeepGulf.

The above paragraph is not meant for the sensitive reader to burst into tears. It is meant to provide a faithful and unadulterated depiction of the reality of facts, while illustrating the utter and shocking ridicule of Mr. Howard's accusation that I embezzled one million dollars from the company.

5. Capital requirements

The projects I have designed single-handedly are worth at least \$1 billion, and could represent in the end as much as \$10 billion if the Indonesian projects come to fruition (there is no typo: billions, not millions).

I think anyone would agree that pursuing billions of dollars of business on a \$3 a day budget, including food, is parsimonious at best, and also quite inadequate. The capital required to land the projects, as I have repeated to Mr. Howard for years, will be several millions, not the mere 0.756 million he raised. I do thank the investors for their capital, but anyone would understand that it is insufficient, especially if it was spent for other purposes.

Although it appears now that I did not need any capital for the first three contracts, each being self-financed, my idea was to build a strong and respected company, for which we would have needed probably between \$5 and \$10 million of capital. I did not foresee that Mr. Howard's scheme was only to derive quick cash-flow for himself and a few investors, most of them his relatives, and that he thought this cash-flow should be earned at the expense of the single operational employee, who was paid considerably less than industry standards, and later was left to literally starve. For a while, I sincerely believed he would finally manage to raise funds for the company from serious investors, but he didn't.

I have repeated to Mr. Howard for several years that we needed large institutional investors, not the savings of middle class individuals, which anyway I was not too happy to accept, for moral reasons. He never seemed to agree. I am still not clear about why he was so reluctant to raise more capital from serious investors. Was he not willing to dilute his share, or did he just not know how to raise capital in such a market? Or was it perhaps both?

Starting in 2015, to my utter surprise, Mr. Howard refused to be in the forefront of our financial endeavors, despite the fact that the only reason for having him in the company in the first place was his vaunted talent for raising capital. He declined to lead the effort, claiming at one point that he would not work without a salary, a claim I found somewhat ironic.

I took the lead and met on multiple occasions with large potential investors in Korea, Singapore, the U.S., and Indonesia, all trips being paid for by third parties. Although the potential investors had a real interest in the projects, all were quite wary of the fact that DeepGulf would not raise a single cent at home. Several were ready to go ahead, but they understandably insisted that we take the first step. That information was consistently relayed to Mr. Howard, who never acted, except to take me once to a mom and pop financing event in Mobile, which proved to be grossly inadequate. Our projects are politically sensitive and require sophisticated international institutional investors, not small investors with only their life savings to risk.

Eventually, I believe Mr. Howard acted behind the scene against my endeavors, and I have the strong sentiment that in November 2016, despite his ignorance of the reality of my efforts, he gave negative information to the U.S. bankers with whom I was in talks, and with whom I had recently met in Jakarta, after meeting with them in Houston. I suspect it was such an unwarranted intervention that resulted in their ceasing abruptly all communication with me after I returned from my last trip to Indonesia, despite the fact that a few days before they had announced to me that they had decided to go ahead with the projects. That was a serious blow, and all my financing efforts in Indonesia and in Korea came to a screeching halt.

6. The technologies behind the projects

The technology behind the projects is poorly understood by the industry. The industry is nascent and no similar project has ever been implemented. Over the years, I discovered that the very physics behind the few projects being contemplated worldwide was flawed. I spent several months in Korea, at the headquarters of the world's largest manufacturer of large compressed gas containment systems, experimented on a specially built life-sized model, and spent months educating engineers in the secrets of gaseous and liquid methane behavior in confined environments. I modeled the true behavior of natural gas in compressed and liquid forms in our particular applications, in a way that is novel and not found in the literature, and I devised all the necessary software. However, Mr. Howard, who has strictly no competence in the matter, systematically played down my findings and my innovations, even when, despite his negative attitude, I succeeded in being granted U.S. patents, which are quite a proof that my ideas were not only novel, but also practical. At one time, he even tried to force me to put his name on one of my patent applications, an illegal if not fraudulent attempt that would have jeopardized the patent in the future and which was the turning point in our relationship.

In addition to the patented work, I have also devised dozens of methods and trade secrets about the design of the maritime carriers required in our projects, both for gaseous and liquid natural gas. Those methods and trade secrets were studied, checked, and endorsed by Korean

shipbuilders after they signed non-disclosure agreements with me. I elaborated the patents, methods, and trade secrets myself and I am not prepared to share them with Mr. Howard, if only because those were developed while not only did I not receive any salary from the company, but I also supported it with my own income without receiving any help from the company whatsoever.

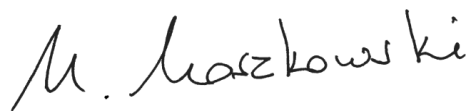
7. A possible future

I have trouble comprehending how Mr. Howard could believe for a minute that he will develop without my technical support the projects to which I have dedicated all my efforts for over a decade, and for which I devised and control all the technology. Does he seriously believe that some retired or insufficiently experienced engineer will be able to substitute not only for me but for the Asian network of partners? Also, I am unsure whether he realizes that a lot of capital will be required and that part of that capital will be needed to pay for company debt, not only to me but to all the sponsors, with interest. Moreover, I own 46.2% of the company's voting stock, and Mr. Howard's current control, which he obtained by proxy thanks to some of the shareholders, is eminently fragile. How Mr. Howard thinks he can make the company work not only without me, but against me, is unclear.

Although it was not my idea to solicit the investors for their capital, and I did not spend it, I sympathize with their predicament, despite Mr. Howard's repeated assurances to me that I should not worry overly about investors who knew there was a risk inherent to their investment. I have made it unwaveringly clear to Mr. Howard and the sponsors, since the day the dispute intensified at the end of August 2016, that it was my firm intention to involve the current investors in any future development, at the same level they now enjoy in DeepGulf. On the other hand, I have also made it clear that in no event shall I involve Mr. Howard at his current stake, and particularly not in a position of control, since he demonstrated that he is prone to abusing it if given the opportunity. As for the shareholders who, for a reason of their own, chose to support Mr. Howard unconditionally in his campaign of destruction of the company and care to hear only his ill-informed version of the story, you will understand that I must reserve my opinion for the time being.

As in the past, I am ready to discuss these issues with you at your convenience.

Sincerely yours.

A handwritten signature in black ink that reads "M. Moszkowski". The signature is written in a cursive, slightly slanted style.

Marc Moszkowski
Senior founder and largest shareholder
m.moszkowski@deepgulf.net

From: m.moszkowski@deepgulf.net
Sent: Thursday, January 11, 2018 8:06 AM
To: 'Tjj757@live.com'
Subject: FW: Fifth DeepGulf letter
Attachments: Letter from DeepGulf's senior founder 18-01-08.pdf

Tom,

See below Mr. Johnson's email in response to the fifth letter and my own reply to him. Mr. Johnson seems to be still making several incorrect assumptions about the situation, despite my past written communication with him. Regretfully, Mr. Johnson continues to turn down my recurrent offers to discuss the issues with him verbally.

Also, see attached a new copy of the fifth letter: a typo had somehow subsisted in the first sentence, for which I apologize. Other typos were also found elsewhere and corrected.

Best regards,

Marc Moszkowski
DeepGulf senior founder

From: m.moszkowski@deepgulf.net [mailto:m.moszkowski@deepgulf.net]
Sent: Wednesday, January 10, 2018 6:21 AM
To: 'Thomas johnson'
Subject: RE: Fifth DeepGulf letter

Tom,

Some of your questions suggest that you did not perhaps carefully analyze the wording of my letters. Some are quite immaterial, since you could obtain answers by merely asking Mr. Howard, or searching company records. As you well know, I don't have access to those records, since I am thousands of miles from Pensacola, in a forced exile arranged by Mr. Howard.

Contrary to one of your statements, Mr. Howard has indeed accused me verbatim and in writing of "*embezzlement and white collar crime*", which was duly reported in my November 19th letter to the shareholders. He has specified the amount of "*over \$900,000*", in writing, and has even suggested another \$100,000 recently, still in writing.

Furthermore, I have been very clear in my repeated statements to you that I am not prepared to send any documentation to either you or Mr. Howard, since he has insulted me recurrently for over a year and you collaborated with him recently in suspending me as the company's president. Moreover, he has ignored for over a year my legitimate requests for DeepGulf's detailed accounts, and I don't think you can disregard the imbalanced nature of your demands.

Despite your and Mr. Howard's attempts to portray me as the accused, I am rather the abused party here, and I don't recognize your self-appointed position of Inquisitor General.

However, if you want to learn more from me, either wait for the next letter to the shareholders or make arrangements for a voice call. After weeks of proposing the call to you, my line is still open. All you need to do is to install Skype on your computer or portable device and contact me (markowitch). You can also install

Whatsapp (+1 251 300 4820). Both work much better than phone calls and are free, although in addition Skype allows conferences and screen sharing.

M

From: Thomas johnson [<mailto:tjj757@live.com>]
Sent: Tuesday, January 9, 2018 11:51 PM
To: m.moszkowski@deepgulf.net
Subject: Re: Fifth DeepGulf letter

Marc

Thank you for the information. It has provided a lot of context for our discussion.

MOSZKOWSKI

1. Mr. Howard started raising money from investors, but, unbeknownst to me, mostly from friends and close relatives. I signed the documents he asked me to sign in the process, but, had I fully understood what he was doing, I would have raised some serious objections:

JOHNSON

Are you claiming you entered the agreement under duress? If so, please provide me with supporting documentation. This could be a troubling issue.

MOSZKOWSKI

2. It so happens that, apparently, the capital raised by Mr. Howard was not spent to pay for my operational expenses, nor those of my business associates in Asia, those expenses amounting to substantially less than the cash-flow I generated.

JOHNSON

How were the funds spent?

MOSZKOWSKI

3. The three contracts in East Timor: 2008 to 2012 Between 2008 and 2010,

JOHNSON

What was the purpose and scope of each of these contracts?

MOSZKOWSKI

4. The contract signed between Toke Oil & Gas and DeepGulf stipulated that DeepGulf would receive 10% of the main sub-contractor's receipts, and Toke 5%. In the end, DeepGulf received between 13.10% and 14.35% of the main sub-contractor's revenue, depending on what DeepGulf's actual receipts were, which Mr. Howard has failed to confirm to me. By the end of the last contract, DeepGulf had received between \$307,000 and \$428,000 more than the contractual obligation Toke Oil & Gas had toward DeepGulf.

JOHNSON

I have been unable to find any mention of this in the records.

MOSZKOWSKI

5. As you know from my other letters, the three projects returned to DeepGulf a substantial cashflow, after all my operational and salary expenses. That cash-flow was apparently used exclusively by Mr. Howard.

JOHNSON

Could you provide me a more detailed explanation?

MOSZKOWSKI

6. Marine operations were successfully resumed at the time of my choice.

JOHNSON

What was the scope of these operations?

MOSZKOWSKI

7. I take the opportunity here to stress that I had negotiated the three contracts in such a watertight manner that not a cent remained unpaid by our clients, who were not only the government of East Timor, but also a consortium of large Korean companies, led by Samsung,

JOHNSON

Where can I get a copy of the contracts?

MOSZKOWSKI

8. At the time, according to calculations I ran later, there should have been in excess of a million dollars in the bank accounts, including the capital raised from investors.

JOHNSON

Please elaborate.

MOSZKOWSKI

9. For a few months, DeepGulf continued supporting at least some of my expenses, but by the end of 2014 it had all but stopped to, although I had continued to inject my personal consulting earnings in the company.

JOHNSON

Did you submit expense requests?

MOSZKOWSKI

10. From 2014 on, the people I call the sponsors (two of them are DeepGulf shareholders, three are Australian, several are Korean, and some are Timorese and Indonesian), paid for all my living and traveling expenses, airfare and accommodation for months on end in Korea, Timor, and Indonesia.

JOHNSON

Please elaborate who these individuals are?

MOSZKOWSKI

11. Mr. Howard's accusation that I embezzled one million dollars from the company.

JOHNSON

I think he is asking for an accounting of the \$950,000. I have not seen anything to indicate an embezzlement charge.

MOSZKOWSKI

12. Capital requirements The projects I have designed single-handedly are worth at least \$1 billion, and could represent in the end as much as \$10 billion if the Indonesian projects come to fruition (there is no typo: billions, not millions).

JOHNSON

What is the basis of your calculations?

MOSZKOWSKI

13. I took the lead and met on multiple occasions with large potential investors in Korea, Singapore, the U.S., and Indonesia, all trips being paid for by third parties.

JOHNSON

Who are these third parties?

MOSZKOWSKI

14. Eventually, I believe Mr. Howard acted behind the scene against my endeavors, and I have the strong sentiment that in November 2016, despite his ignorance of the reality of my efforts, he gave negative information to the U.S. bankers with whom I was in talks, and with whom I had recently met in Jakarta, after meeting with them in Houston.

JOHNSON

This is an actionable offense. Do you have details?

MOSZKOWSKI

15. I spent several months in Korea, at the headquarters of the world's largest manufacturer of large compressed gas containment systems, experimented on a specially built life-sized model, and spent months educating engineers in the secrets of gaseous and liquid methane behavior in confined environments.

JOHNSON

What were the experiments and how did they go?

MOSZKOWSKI

16. At one time, he even tried to force me to put his name on one of my patent applications, an illegal if not fraudulent attempt that would have jeopardized the patent in the future and which was the turning point in our relationship.

JOHNSON

This is an actionable offense. Do you have details?

MOSZKOWSKI

17. In addition to the patented work, I have also devised dozens of methods and trade secrets about the design of the maritime carriers required in our projects, both for gaseous and liquid natural gas. Those methods and trade secrets were studied, checked, and endorsed by Korean shipbuilders after they signed non-disclosure agreements with me.

JOHNSON

Was this NDA with NK and Mr. Tark?

Tom

Sent from [Outlook](#)

From: m.moszkowski@deepgulf.net <m.moszkowski@deepgulf.net>

Sent: Tuesday, January 9, 2018 3:31 AM

To: Tjj757@live.com

Subject: Fifth DeepGulf letter

Tom,

please find attached my fifth letter of information to DeepGulf's investors. Again, feel free to contact me for any question arising from the five letters.

Best regards,

Marc Moszkowski

Senior founder and largest owner

Letter from DeepGulf's senior founder and largest shareholder to the Shareholders

14 January 2018

Dear DeepGulf Shareholder,

This is my sixth letter to the shareholders since November 2017. It is made necessary by the continued refusal of two of the three directors to even discuss their constant diktats and their flow of unmeritorious and unsubstantiated accusations against me. The two directors who are currently dictating the policies of the board are both neophytes in the management of real complex business, especially overseas, and in particular in difficult land and marine environments. As such, their apparent misunderstanding, be it genuine or feigned, can be easily explained, but the harassment to which they are subjecting me is not, and I strongly suspect their real rationale for perpetuating the current quagmire is motivated by self-serving considerations.

As the company's president, I have been trying for a year and a half to obtain from Mr. Howard the detail of his expenses since 2008. Mr. Howard has consistently ignored my requests and finally attempted to invalidate them by suspending me from my position of president, with the support of Mr. Johnson, a close friend and associate of his whom he appointed to the board of directors to fill the seat of a departed director who had acted as an impartial mediator between Mr. Howard and myself.

I have known Mr. Howard for more than thirteen years and I am quite familiar with his idiosyncrasies, in particular his proclivity to deflect obstinately the discussion of such issues he tries to avoid onto one single detail of his choice, or even one single innocuous word, in a barrage of futile but repetitious questions aimed at evading the real relevant issues, while totally ignoring whatever further and abundant information is made available to him. This is the main reason I started to write directly to all the shareholders in November 2017. I would not be writing these letters if Messrs. Howard and Johnson, particularly Mr. Howard, had exhibited in the current dispute at least a modicum of good faith and intellectual honesty.

I have tried below to structure in nine points the issues pertaining to Messrs. Howard's and Johnson's accusations regarding the salary I received from another company for work done outside of DeepGulf's scope of work:

1. Messrs. Howard and Johnson seem to claim it was contrary to Florida corporate statutes for me to receive a salary from a company other than DeepGulf.
2. As a holder of a U.S. visa, U.S. immigration law did not authorize me to receive a salary from a company other than DeepGulf for any work done on U.S. soil, an

instance that did not occur. Said law did not prevent me from receiving a salary from a company other than DeepGulf for work done overseas, especially if said company was foreign. Such salary would not be subject to U.S. taxation.

3. While being employed by DeepGulf, a Florida corporation, I received a salary complement from an independent foreign company, in a foreign country, as a foreign national, to discharge duties that were not in DeepGulf's scope of work, namely such duties expected from my position of president director general of the independent foreign company. Such duties were instrumental in producing the large cash-flow that DeepGulf received between 2008 and 2012. Sometime during my employment by the independent foreign company I proposed and engineered the transfer of 1/3 of its stock to DeepGulf for the price of only one symbolic U.S. dollar (\$1), as an administrative favor to DeepGulf, although the foreign company was then in full activity and therefore quite valuable.
4. The salary I received from the independent foreign company required an authorization by the board of directors of said independent foreign company, of which none of DeepGulf's directors was a director, except myself, in a personal capacity. Such authorization was granted.
5. Before 27 October 2010 DeepGulf did not have any claim to any stock of the foreign company and consequently could not have been involved in any way in the foreign company authorization process. During such period I received a salary of \$160,000 from the independent foreign company.
6. Between 27 October 2010 and 13 December 2012 DeepGulf owned either none or 1/3 of the foreign company's stock, depending on the legality, according to Timorese law, of the transaction that was meant to transfer 1/3 of the stock to DeepGulf. Such legality is not confirmed since rules concerning ownership by a foreign corporation were not ascertained at the time and the transaction was never registered with the East Timorese Government. I had engineered the transfer as an administrative favor to DeepGulf, which paid only \$1 for 1/3 of a company that was then in full activity and was therefore quite valuable. During that period, the only directors on the foreign company's board were a Timorese national and myself. As you well know, shareholders are not involved in the management of a corporation, except if elected to its board of directors. DeepGulf's only director sitting on the foreign company's board was myself, in a personal capacity. Not sitting on the board of the foreign company, other DeepGulf directors were therefore not involved in the management of the foreign company, nor could they be involved in any way in the foreign company authorization processes.

During such period, and before 21 November 2011, I received a salary of \$185,000 from the foreign company.

I derived no personal benefit whatsoever from the \$1 transaction, and neither did the seller. We both acted in good faith, driven by a sentiment of constructive generosity toward DeepGulf, but in retrospect, had I known Messrs. Howard and Johnson would suddenly have an issue nearly a decade later with employees of the foreign company

receiving a salary for work done for said foreign company, I think I would have been well advised to refrain from proposing and facilitating the transfer.

7. After 13 December 2012, DeepGulf owned either none, 1/3, 2/3, or 3/3 of the foreign company, depending on whether the transfer of the last 1/3 was or not effective, since it appears the full payment for that share was not made, and on whether or not the stock transfers were at all legal according to Timorese law, since the regulations concerning ownership by a foreign corporation had not been ascertained and the transfers were never registered with the East Timorese Government. The transactions for the second and third transfers happened on the same day. The price for the second 1/3 was a symbolic \$100, while the price for the last 1/3 was \$100,000, although one half of it was never paid and one half was in fact a personal loan to the seller. Until March 2013, at the earliest, none of DeepGulf's directors other than myself was sitting on the board of the foreign company, and therefore none except myself was involved in the management of the foreign company or in any of its authorization processes. In March 2013, DeepGulf appointed one additional director to the board of the foreign company, but the appointment proved illegal according to Timorese law.

During that period, which started on 13 December 2012, I received no salary whatsoever from the foreign company. During such period the foreign company had no revenue, except for the sale of the few assets acquired during the projects, which had been wholly amortized and depreciated. The proceeds from the sale of the few remaining assets were used to pay for local expenses related to the end of the last contract, including clean-up.

8. As a reminder, the last two thirds of the foreign company had been acquired on paper by DeepGulf only for convenience, apparently in order to facilitate Mr. Howard's U.S. visa petition on my behalf and as a conduit for making funds available to the last Timorese director. After the end of the last project in 2012, the foreign company was an empty shell made valuable only by my presence and that of the Timorese partner. At that time it had no revenue. The foreign company ceased to exist when government dues ceased to be paid.
9. There were 4 directors on the board of DeepGulf's until December 2016, of which I doubt 2 at least, and probably 3, would not have agreed with the salary complement if their opinion had been sought in 2008. As for the 4th director, Mr. Howard, I do not believe he would have had any legitimate reason to object. Had Mr. Howard had the power to prevent the payment to me of a salary complement by the independent foreign company, which power he did not have, I would have been forced to resign immediately from DeepGulf and conduct the Timorese projects on my own. The capital would have been paid back to the investors, the company dissolved, and I would have earned about an extra \$1,000,000 in the process. It is unreasonable for Messrs. Howard and Johnson to believe for a second that I could have accepted to work for \$10 or \$15 an hour for doing all the work in projects I had developed and financed myself and on which I risked my life every day, only to go to jail for a default on my tax payments, and lose my only house altogether, while Mr. Howard paid himself and his secretaries, for unproductive activities and from the cash-flow I produced and the capital raised from investors, substantial salaries which they used without a doubt to pay for their own mortgages and taxes. Incidentally, I do not remember having ever

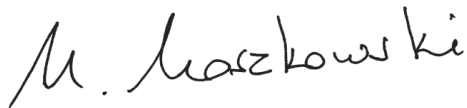
negotiated the salaries paid to Mr. Howard and his secretaries, or any other expense such as office leases, let alone authorized them.

What is Messrs. Howard's and Johnson's endgame? What is the genuine reason for their pointless and unsubstantiated claims and accusations? What are they hiding by refusing to answer my own questions about how the cash-flow I produced and the capital raised from investors were spent? Is there something I ignore about the whereabouts of the capital? After having suspended me as the president, is their plan to continue manipulating the shareholders, after they manipulated the composition of the board of directors to their own advantage, into determining wrongfully that the company does not owe me anything of the close to \$800,000 I rightfully claim in an easily verifiable fashion, plus the substantial amounts spent by the sponsors? I expect the debt to be negotiated at some point, but I cannot consent to its sheer obliteration as a consequence of the current campaign of defamation and intimidation.

Will the shareholders side with Messrs. Howard's and Johnson's plan, thinking it is in their best interest to take advantage of my current situation as an exile? Or will the shareholders finally recognize that they should perhaps have a realistic view at the current issues, based on facts, and facts only?

As in the past, I am ready to discuss these issues with you at your convenience.

Sincerely yours.

A handwritten signature in black ink that reads "M. Moszkowski". The signature is written in a cursive, slightly slanted style.

Marc Moszkowski
Senior founder and largest shareholder
m.moszkowski@deepgulf.net

From: m.moszkowski@deepgulf.net
Sent: Wednesday, January 17, 2018 8:11 AM
To: Tjj757@live.com
Subject: RE: Sixth DeepGulf letter

Tom,

I read in your email that, despite the quite elaborate information I have compiled and sent you over the past two months, you continue to make clearly uninformed assumptions. I wonder whether you have actually read and understood my letters and emails. You continue to focus exclusively on the same pointless demand, the validity of which I am precisely questioning in my letters and emails. I recognize in your and Mr. Howard's obstinacy the idiosyncrasy I described in my sixth letter. As I wrote to you in earlier messages, I believe Mr. Howard and you are exhibiting this apparent obduracy on purpose, as a piece of legerdemain to procrastinate forever and avoid addressing the real issues.

Notwithstanding your repeated and stubborn demands, you must know by now that I will not respond positively to your diktats. Six or seven years after having received the relevant information from me, Mr. Howard suddenly accused me recently, and quite inanely, of having embezzled a million dollars before he even started studying the matter, thus making any cooperation with him impossible. I hoped for a moment that your approach would be different and that you would demonstrate some candidness in your dealings with me, but unfortunately this did not happen.

Your remark about how "*interesting*" it is to you that I should no longer refer to myself as DeepGulf's president is quite surprising, since you wrote in the first paragraph of your letter to the shareholders dated 3 January: "*Mr. Moszkowski has been suspended as President of DeepGulf*". On that day I ceased signing my letters and emails as president.

I read it is in your opinion my responsibility to provide "*the shareholders an update on the Timor/Asia operations*", which I find quite puzzling since I have sent the shareholders numerous elaborate letters and emails recently, which do depict in detail the history of my activities in Asia. As for the technical detail of the operations, it has been largely distributed inside and outside the company since 2012. I assume you no doubt have a copy.

In another contradiction of one of your statements, I have never stated anywhere that the records you are demanding from me "*will implicate Rus*". Such an uninformed statement only suggests to me a seeming lack of understanding of the numerous letters and emails I have addressed to you in the past two months.

As repeatedly offered in almost all my previous messages to you, I propose again that you call me if you want to learn more. Your continued and obstinate refusal to call only suggests that understanding facts is not your real concern.

Marc

PS: this email has been copied to the shareholders for whom I have a valid email address (now 23 out of 42).

From: Thomas johnson [<mailto:tjj757@live.com>]
Sent: Tuesday, January 16, 2018 9:50 PM
To: m.moszkowski@deepgulf.net

Cc: rus@holdg.com

Subject: Re: Sixth DeepGulf letter

Marc:

Thanks for the letter. The information is appreciated.

I find it interesting you no longer refer to yourself as President of DeepGulf, but rather as a founder and shareholder.

As a Board Member, you realize that your responsibilities to the company have not ceased even though you have been suspended by the Board.

These responsibilities are to provide the shareholders an update on the Timor/Asia operations, and to comply with the Board's request for a detailed accounting of the Toke's transactions.

Please provide this information forthwith.

As an aside, in order to attain the goals you have repeatedly stated in your correspondence, specifically establishing complete justification of your position on Toke, removal of Rus from the Board, and not having me be "judge and jury", providing the records of Toke's transactions will facilitate all three.. As you have stated, the records will clear you, they will implicate Rus, and we can have an independent party audit the records to substantiate your claims.

We eagerly await the records.

Regards

Tom

Sent from [Outlook](#)

From: m.moszkowski@deepgulf.net <m.moszkowski@deepgulf.net>

Sent: Sunday, January 14, 2018 6:09 AM

To: Tjj757@live.com

Subject: Sixth DeepGulf letter

Tom,

please find attached my sixth letter of information to DeepGulf's investors. Again, feel free to contact me for any question arising from the six letters.

Best regards,

Marc Moszkowski
Senior founder and largest owner

From: m.moszkowski@deepgulf.net
Sent: Thursday, January 25, 2018 10:00 AM
To: Tjj757@live.com
Subject: RE: Sixth DeepGulf letter

Tom,

I sense from your recurring questions that you have not read carefully, or understood, my numerous letters and past emails, which, if verified, I find quite unprofessional.

1. To the best of my recollection, neither Mr. McMillan nor Mr. Lott was involved directly in the drafting and preparation of the PPMs, but my providing information primarily to Mr. Howard does not necessarily indicate that he portrayed it correctly. It now appears, from the past year of communication, that there is a lot of fantasy in the way Mr. Howard rendered facts, and his recent claims that he was "*misled*" are less than ingenuous.
2. The facts and dates you are providing for the transfer of Toke to DeepGulf are erroneous. See my previous letters. However, your remark contradicts itself, since the tentative sale happened indeed after the end of the last project, not before. Toke was indeed an empty shell when it was tentatively transferred to DeepGulf.
3. Given the current situation, I have no obligation whatsoever to the board of directors until the information I demanded from Mr. Howard concerning his activities and expenses while he was acting as an officer necessarily reporting to the president is provided. Again, see my previous letters.
4. The idea that I was "*dispatched to Timor*" is ludicrous, as I have explained in detail in previous letters and emails. I invite you to read and understand my letters and emails before repeating such outlandish statements. In particular, I have explained why Toke could not, and should not, be a subsidiary of DeepGulf's. I invite you again to read my previous letters. It seems there are some minutes of board meetings that are in discrepancy with facts, but it also appears that some board meetings and their minutes were created after the facts.
5. Finally, when did I ever indicate that I had "*any specific accusation against [...] Mr. Lott*"? It is absolutely clear that such is not the case. Your innuendo verges on libel and I take it extremely seriously. Since by definition you were not on the board while he was, I take it that the slanderous suggestion comes from Mr. Howard.

As to Mr. Howard, I have stated facts about his abandoning the company at the end of 2014, about his total lack of concern afterwards, about his dropping a visa application for me without telling me, which resulted in my being abroad today, and about his obduracy in refusing to provide explanations about his past employment and past expenses within DeepGulf. I have not accused him of any wrongdoing for the time being, although I have asked questions about large amounts for which I have no records, among others. On the other hand, Mr. Howard did accuse me of severe wrongdoing in writing without a shred of evidence and despite the documents and explanations I provided.

As you should perfectly well know from my abundant past correspondence, I will not attend any meeting in which Mr. Howard is present. See my seventh letter to the shareholders.

If you want to talk with me you know how to reach me through Skype or WhatsApp.

M

P.S.: as usual, this letter is copied to the 23 investors out of 42, for whom Mr. Howard has not withheld the email addresses from me.

From: Thomas johnson [mailto:tjj757@live.com]
Sent: Wednesday, January 24, 2018 8:12 PM
To: m.moszkowski@deepgulf.net
Cc: rus@holdg.com
Subject: Re: Sixth DeepGulf letter

Marc:

I hope the New Year is treating you well.

I look forward to the meeting tomorrow. A few points I would like to clear up.

1. If you did not provide Mr. Howard, Mr. Lott, and Mr. McMillan the information regarding the state of affairs with Toke and East Timor for inclusion in the PPM, who did?
2. The sale of Toke to DG was completed in May 2012. This coincides with the end of contract number three for the various surveys. Why do you claim that Toke was an "empty shell, the value of which resided only in me"? Nothing I can find contradicts this. Please explain.
3. While you may have been putting out a large amount of information to the shareholders, you have still not fulfilled your obligation to report to the Board about the state of affairs in Asia. Please do this.
4. You were dispatched to Timor in October 2007. You were further dispatched in February 2008 to set up the subsidiary, Toke Petroleum. However, the records you have provided for your visa application plainly show Board records from Toke dated December 2007 and January 2008. Why did a subsidiary you were authorized to make in February 2008 already exist in December 2007?

Also, if you have any specific accusations against Mr. Howard or Mr. Lott, please let me know and I will start looking into them.

Regards

Tom

Sent from [Outlook](#)

From: m.moszkowski@deepgulf.net <m.moszkowski@deepgulf.net>
Sent: Thursday, January 18, 2018 1:16 PM
To: 'Thomas johnson'
Subject: RE: Sixth DeepGulf letter

Tom,

Although Mr. Howard has accustomed me in the past to such immature practices, these childish word plays are becoming quite annoying (which I believe is Mr. Howard's primary reason for playing his tricks in the first place). First I was admonished by Mr. Howard for using the title CEO, then the title EO, and now I get accused of misrepresentation for not using the title of President. The shareholders will judge the relative importance of the matter, and I invite them to let me know which title they prefer I use.

With regard to the dates you are mentioning, you are obviously mistaken, as the records in Mr. Howard's possession would show, in particular the documents establishing the transfer of shares. Mr. Howard was supposed to be an accomplished professional, and his sudden claims that he "*was lead [sic] to believe*" dealings that were duly documented elsewhere can only reveal his incompetence a-posteriori. In addition Mr. Howard knows perfectly the primary reason for DeepGulf to have acquired Toke. Read my letters.

For your information, I did not write the PPMs. Mr. Howard did. I may have signed them upon returning from one of my trips, trusting his experience, acumen, and integrity, but I certainly did not write them. However, anyone with a modicum of understanding of the history of DeepGulf would realize that the matter of ownership of Toke by DeepGulf was quite inconsequential, if not totally so, as explained in some of my letters, especially when considering that the company does not even exist any more. I would be interested to discuss with you in which way the ownership of an empty shell, the value of which resided only in me, could in any way have affected the future of DeepGulf, since, as you are well aware of, I did not run away from DeepGulf after the dissolution of Toke, and I am still working today.

I suspect you carefully chose the words "*criminal liability*" in order to intimidate me, but I think you should first reflect on the actual importance, or rather lack of importance, of the events in reference.

Don't you think it is high time to stop playing Mr. Howard's petty and futile tricks, and start focusing on real hard business facts?

If you "*do not understand*" the "*rational [sic]*" for my claims, feel free to call me, as always.

Marc

P.S.: I did not request your permission to send correspondence to the shareholders in the past, and I don't need it now. I will continue to faithfully copy them of any correspondence with you. I wonder what rationale you had in mind for giving me a permission you know I do not need.

From: Thomas johnson [<mailto:tjj757@live.com>]
Sent: Thursday, January 18, 2018 12:32 PM
To: m.moszkowski@deepgulf.net
Cc: rus@holdg.com
Subject: Re: Sixth DeepGulf letter

Marc:

For the record, you are still the President and a Board member of DeepGulf. You have been suspended from the duties of the office. Not advising shareholders of your title and position is a misrepresentation of the current state of affairs.

With regards to Toke, as I look through DeepGulf's records, it is quite apparent that the Board was lead to believe that DeepGulf was the sole owner of Toke in August of 2012. The PPM distributed to perspective shareholders plainly stated this. Yet now you claim the ownership of Toke is in dispute. I have looked back through your letters and do not understand your rational for this claim. Please clarify. If what you claim is true, this represents a serious misrepresentation by the Board to the perspective investors, with the associated possibility of criminal liability by the Board members involved.

Tom

P.S. Please feel free to forward any and all of our correspondence to the shareholders.

Sent from Outlook

From: m.moszkowski@deepgulf.net <m.moszkowski@deepgulf.net>

Sent: Wednesday, January 17, 2018 7:10 AM

To: Tjj757@live.com

Subject: RE: Sixth DeepGulf letter

Tom,

I read in your email that, despite the quite elaborate information I have compiled and sent you over the past two months, you continue to make clearly uninformed assumptions. I wonder whether you have actually read and understood my letters and emails. You continue to focus exclusively on the same pointless demand, the validity of which I am precisely questioning in my letters and emails. I recognize in your and Mr. Howard's obstinacy the idiosyncrasy I described in my sixth letter. As I wrote to you in earlier messages, I believe Mr. Howard and you are exhibiting this apparent obduracy on purpose, as a piece of legerdemain to procrastinate forever and avoid addressing the real issues.

Notwithstanding your repeated and stubborn demands, you must know by now that I will not respond positively to your diktats. Six or seven years after having received the relevant information from me, Mr. Howard suddenly accused me recently, and quite inanely, of having embezzled a million dollars before he even started studying the matter, thus making any cooperation with him impossible. I hoped for a moment that your approach would be different and that you would demonstrate some candidness in your dealings with me, but unfortunately this did not happen.

Your remark about how "*interesting*" it is to you that I should no longer refer to myself as DeepGulf's president is quite surprising, since you wrote in the first paragraph of your letter to the shareholders dated 3 January: "*Mr. Moszkowski has been suspended as President of DeepGulf*". On that day I ceased signing my letters and emails as president.

I read it is in your opinion my responsibility to provide "*the shareholders an update on the Timor/Asia operations*", which I find quite puzzling since I have sent the shareholders numerous elaborate letters and emails recently, which do depict in detail the history of my activities in Asia. As for the technical detail of the operations, it has been largely distributed inside and outside the company since 2012. I assume you no doubt have a copy.

In another contradiction of one of your statements, I have never stated anywhere that the records you are demanding from me "*will implicate Rus*". Such an uninformed statement only suggests to me a seeming lack of understanding of the numerous letters and emails I have addressed to you in the past two months.

As repeatedly offered in almost all my previous messages to you, I propose again that you call me if you want to learn more. Your continued and obstinate refusal to call only suggests that understanding facts is not your real concern.

Marc

PS: this email has been copied to the shareholders for whom I have a valid email address (now 23 out of 42).

From: Thomas johnson [<mailto:tjj757@live.com>]
Sent: Tuesday, January 16, 2018 9:50 PM
To: m.moszkowski@deepgulf.net
Cc: rus@holdg.com
Subject: Re: Sixth DeepGulf letter

Marc:

Thanks for the letter. The information is appreciated.

I find it interesting you no longer refer to yourself as President of DeepGulf, but rather as a founder and shareholder.

As a Board Member, you realize that your responsibilities to the company have not ceased even though you have been suspended by the Board.

These responsibilities are to provide the shareholders an update on the Timor/Asia operations, and to comply with the Board's request for a detailed accounting of the Toke's transactions.

Please provide this information forthwith.

As an aside, in order to attain the goals you have repeatedly stated in your correspondence, specifically establishing complete justification of your position on Toke, removal of Rus from the Board, and not having me be "judge and jury", providing the records of Toke's transactions will facilitate all three.. As you have stated, the records will clear you, they will implicate Rus, and we can have an independent party audit the records to substantiate your claims.

We eagerly await the records.

Regards

Tom

Sent from Outlook

From: m.moszkowski@deepgulf.net <m.moszkowski@deepgulf.net>
Sent: Sunday, January 14, 2018 6:09 AM
To: Tjj757@live.com
Subject: Sixth DeepGulf letter

Tom,

please find attached my sixth letter of information to DeepGulf's investors. Again, feel free to contact me for any question arising from the six letters.

Best regards,

Marc Moszkowski
Senior founder and largest owner

Letter to the shareholders from DeepGulf's president, senior founder, and largest shareholder

25 January 2018

Dear DeepGulf Shareholder,

This is my seventh letter to the shareholders since November 2017.

Mr. Howard has convened a meeting of the Board of Directors for today. Hereafter are my comments about the tentative meeting:

- a. Mr. Howard has neglected to provide a purpose for the meeting.
- b. The company has used the free of charge Skype for all verbal communication since 2004, but it seems the new director declines to use it. I am of course reluctant to make the long international call to the U.S. or the United Kingdom telephone numbers Mr. Howard has provided as a substitute for our usual instrument of communication.
- c. Mr. Howard has conducted all past board meetings like court of justice trials, in which he dictated the choice of subjects, censored any topic I chose to bring forward, and refused to answer any question regarding his own actions. He has filled in person the positions of judge, jury, public prosecutor, bailiff, and also potential defendant, which is unacceptable in this dispute between the two company founders. If the dispute is to find a resolution Mr. Howard will have to resign his self-appointed quasi-judicial roles.
- d. Messrs. Howard and Johnson have consistently ignored the facts I have presented to the shareholders in the past two months. To this day not one of the various issues addressed in my six letters and numerous emails has been candidly acknowledged by either Mr. Howard or Mr. Johnson. As I have remarked in other messages, if Messrs. Howard and Johnson really wanted to learn more about the company, instead of seeking what appears to be indefinite procrastination, they would no doubt have tried another less inflexible approach.
- e. There was an impartial mediator between Mr. Howard and me until recently. Mr. Howard managed not only to have him not seek reelection to the board, but also to replace him by a close friend and associate of his, whom I sense has behaved since his appointment to the board as a proxy for Mr. Howard's. The new director has referred to himself as an investigator but, strangely, has turned down each and every one of my repeated offers to be interviewed by him. A board of directors meeting will in no way substitute for a candid conversation between Mr. Johnson

and me, since the very choice of issues addressed in past board meetings has been dictated by Mr. Howard, and subjected to his censorship. It appears from previous remarks by Mr. Howard, when I first expressed my wish to interview Mr. Johnson prior to his appointment – a request that was anyway later turned down – that Mr. Howard is uncomfortable with my speaking directly with Mr. Johnson outside of Mr. Howard's chaperonage.

- f. Mr. Howard has unwisely accused me of having embezzled \$1 million from another company, without a shred of evidence, but ignores my requests that he provide details regarding the more than \$1 million of DeepGulf's money for which I have no accounting.
- g. Mr. Howard knows perfectly well that since he proffered such insulting accusations without any evidence whatsoever he made it impossible for me to talk with him directly.

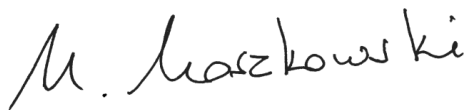
For all the reasons mentioned above I won't be able to attend the board meeting, a fact that Messrs. Howard and Johnson could not ignore when the invitation was sent. Any verbal communication will have to exclude Mr. Howard.

It seems reasonable to me that we need an impartial mediator with international business experience if we are to break the current deadlock. It appears neither Mr. Howard nor Mr. Johnson has any such experience. It is to be hoped that said impartial mediator would take it to heart to thoroughly study the abundant information I have provided and will consider interviewing the prime, if not the only, witness.

I have described in great detail my past business and professional activities, revenues and expenses, which Mr. Howard has consistently accused me of having forged, without a semblance of evidence. On the other hand, I am still awaiting the figures for Mr. Howard's business and professional expenses.

As in the past, I am still prepared to discuss these issues with you at your convenience.

Sincerely yours.

A handwritten signature in cursive script that reads "M. Moszkowski". The signature is written in dark ink and is positioned above the typed name and contact information.

Marc Moszkowski
President, senior founder, and largest shareholder
m.moszkowski@deepgulf.net

Letter to the shareholders from DeepGulf's president, senior founder, and largest shareholder

27 January 2018

Dear DeepGulf Shareholder,

This is my eighth letter of information to the shareholders since November 2017. In this one page letter I will try to dispel some possible misapprehensions.

I did not accept to dilute my ownership of a company that was founded exclusively on my experience, my work, my intellectual property, and my contracts, just to give Mr. Howard virtual – although artificial – control of the company after he raised capital from kin and friends, while I would lose all my assets in the process.

I accepted to dilute my ownership, and all but lose control of the company, in exchange for a first round of capitalization that returned \$756,000 in capital. Such initial capital would be used to develop the company's business, in addition to the \$500,000 or so of net cash-flow that I generated after all my salaries and expenses had been paid. However, it seems the monies had evaporated by the time Mr. Howard stopped paying me a salary and reduced me to support the company's operations with my own savings and personal earnings, first partially and then fully. This happened nearly two years before the last payment for my services was credited to DeepGulf's accounts.

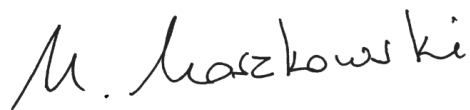
Contrary to Mr. Howard's bizarre assertions, the issue is not about how much potential additional cash-flow could have come to DeepGulf from overseas, but rather about what was done with \$1,250,000 of existing net cash-flow and capital already in DeepGulf's accounts. In contradiction with Mr. Howard's strange notion that I should not have received a salary exceeding \$10 or \$15 an hour for procuring and managing singlehandedly – as far as DeepGulf was concerned – \$15 million worth of business on the other side of the planet and in extremely difficult conditions, any savings derived from not paying me the salary I evidently deserved would have gone to other overseas operatives, certainly not to Mr. Howard, nor to DeepGulf.

The real issue is that it is indisputable that if I had had access to the \$1,250,000 that should have remained available for developing the company, after deducting of course reasonable expenses to maintain the company at home, I would have obtained one or several new contracts years ago. See previous letters for details about the amounts in question. Such contracts would have generated a considerable cash-flow for DeepGulf, instead of which it is the considerable hardship which the lack of financial resources forced me to endure that delayed those contracts by several years, as I have described in detail in previous letters.

Although Messrs. Howard and Johnson prefer to accuse me – quite absurdly and without a shred of evidence – of having embezzled one million dollars overseas, they have not accepted so far to discuss my very legitimate concern, the only one that is actually of any importance: what happened to the more than \$1 million of net cash-flow and capital that should have remained in the company's accounts, and why could I not use it to develop the business?

I assume at least some of the investors will agree that my concern is of particular significance.

Sincerely yours.



Marc Moszkowski
President, senior founder, and largest shareholder
m.moszkowski@deepgulf.net

From: m.moszkowski@deepgulf.net
Sent: Saturday, January 27, 2018 2:56 PM
To: 'Tjj757@live.com'
Subject: Eighth DeepGulf letter
Attachments: Letter from DeepGulf's senior founder 18-01-27.pdf

Tom,

It appears from Mr. Howard's email below that after having "*reprimanded*" me for not signing my letters as the president, Mr. Howard now "*reprimands*" me for writing as the president. Have we reached a new level of immaturity and intellectual dishonesty, or are we perhaps again playing on words?

I will of course continue to write to the investors personally, since Mr. Howard's strategy seems to be making any real fact regarding the history of the company disappear in some black hole of his design. I should have added the role of warden to the long list of quasi-judicial roles Mr. Howard has ascribed to himself.

Although I am of course not subordinated to Mr. Howard, I find myself technically un-subordinated to the board, but only because Mr. Howard gained control of the board after the coup in which he managed to have an impartial director replaced by a close friend and associate of his, who refers to himself as an investigator but appears to be so partisan that he refuses to even interview me.

You will find attached my eighth letter of information to DeepGulf's investors.

Best regards,

Marc Moszkowski
President, senior founder, and largest owner

P.S.: since I cannot attribute Mr. Howard's last line to sympathy, given the current dispute, I take it as sarcasm. The line reminds again of Mr. Howard's propensity to make uninformed assumptions that now touch my private life. I think Mr. Howard should stay away from private matters. I did not make Mr. Howard privy to my whereabouts, so his last line is based on nothing but conjecture, but, to respond to his sarcasm, I am not in a position to state whether "the skiing is good" or not, since I haven't had any personal experience of it this season.

From: Rus Howard [<mailto:rus@holdg.com>]
Sent: Friday, January 26, 2018 8:11 PM
To: m.moszkowski@deepgulf.net
Subject: RE: Seventh DeepGulf letter

Oops, I almost forgot to acknowledge your most recent letter. I found it to be quite informative despite the fact that you are again, as the President, sending communications to shareholders that have not been approved, despite clear instructions from the board prohibiting you from doing so. I am reprimanding you for your insubordination.

Hope the skiing is good.

From: m.moszkowski@deepgulf.net
Sent: Sunday, January 28, 2018 12:26 PM
To: Tjj757@live.com
Subject: FW: Eighth DeepGulf letter

Tom,

I understand it might be tempting for an individual without practical international business experience to rewrite company history 10 years after the fact, in complete disregard of the specifics that I have made available to you in numerous letters and emails. For your information, despite your being "*in touch with the Timor Leste consulate*" the government of East Timor is not "*actively encouraging*" per se the establishment of subsidiaries of foreign companies: they are in reality encouraging large investment by foreign corporations, according to strict rules and quotas of foreign capital requirement, Timorese shareholding, Timorese management, Timorese directors, and Timorese employment, and the establishment of such subsidiaries takes a long time. DeepGulf had no plan to make any investment in East Timor. Because of the ongoing political atmosphere in East Timor, the government has had very little success in actually attracting capital, despite dozens of official claims to the contrary.

Additionally, if you had any experience of East Timor and its government's practices, you would know that there is a wide and deep chasm between what the government may officially state and advertise and the reality of facts, not to forget the exposure to bribery. I cannot blame you for not having any such experience, but I regret that your prejudices prevent you from acknowledging that I have a large experience of these matters.

To give you just one example of so-called foreign subsidiaries à la Timor, at one time the head of the national Timorese oil and gas corporation demanded from me that we provide 100% of the capital investment in the Timorese company that was to conduct one of the contracts I was pursuing, while their share of the stock, of the board of directors, of the voting rights, and of the profit would be at least 51%, and their share of investment would be 0%. That's the reality of business there, not the naïve fairy tales you chose to believe for personal convenience. Incidentally, a few years prior I had refused to pay a bribe to the head of the national oil and gas corporation, and he would no doubt have demanded considerably more this time.

You have seemingly not read my letters thoroughly, otherwise you would realize that: firstly, we did not have a choice regarding the creation of a DeepGulf subsidiary or not; secondly, it was to be avoided at all cost; thirdly, DeepGulf brought no investment to East Timor whatsoever; fourthly, the contracts would not have been awarded to a foreign subsidiary, especially if it had made no investment in the country; fifthly, it was anyhow not what the Timorese founders of Toke were prepared to do; and sixthly, the level of actual ownership would not have changed DeepGulf's cash-flow, which anyhow ended up being higher than contractually arranged and could possibly have been lower if strict rules had been enforced.

I encourage you to read and re-read this email and all my previous correspondence before you comment further on seemingly controversial issues that have been debunked long ago.

Regarding the interview, which I have so far unsuccessfully proposed to you since November 2017, I have again to remind you that you are not a judge in a court of justice, nor are you the jury, nor the public prosecutor, nor even an investigator. You are a company director, just like I am, and at the same level, although I own 46% of the company and you own less than 1%. I would assume you are trying to understand the history of the company, although you are hampered in your effort by deep-seated and uninformed prejudice. I am open to discussing freely with you any topic you and I agree to address, on an equal footing, but I will not tolerate the impudence of your plan to record me on the first interview. Furthermore, since you are assembling a list of questions, and so will prepare yourself, I insist that you make this list of questions available to me in due time before the call. Also, you will have to give me your word that Mr. Howard will not be present,

nor that he will listen, and you will provide the identities of any attendee, each of whom will need to be accepted by me. Finally, although I have been prepared to talk with you candidly for more than two months, I will not abide by any attempt on your part to dictate the choice of the subjects of conversation.

If you commit to speaking courteously and respectfully we will have a conversation. As you know, Skype or WhatsApp exclusively. My numbers are in a former email.

Marc

P.S.: this email is copied to 23 of the 42 investors in the company, addresses for the balance being withheld from me by Mr. Howard.

From: Thomas johnson [<mailto:tjj757@live.com>]
Sent: Saturday, January 27, 2018 7:46 PM
To: m.moszkowski@deepgulf.net
Subject: Re: Eighth DeepGulf letter

Marc:

You are quite amazing. I am beginning to think you enjoy the word games.

Your first paragraph is two separate issues. But you know that.

I am glad you would like to be interviewed. I will assemble my list of questions and we can arrange a time so I can have the recording device available. Mid-week next week, most likely.

One question that I do know pertains to the assertion that Toke had to be set-up separate from DeepGulf. I have been in touch with the Timor Leste consulate. I have also been researching Timor Leste law in the 2007 time frame. I have yet to find anything prohibiting the establishment of a subsidiary of a foreign company in Timor Leste. In fact, I have found that their government was actively encouraging just that.

Talk to you soon.

Tom

Sent from Outlook

From: m.moszkowski@deepgulf.net <m.moszkowski@deepgulf.net>
Sent: Saturday, January 27, 2018 1:55 PM
To: Tjj757@live.com
Subject: Eighth DeepGulf letter

Tom,

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Although I am of course not subordinated to Mr. Howard, I find myself technically un-subordinated to the board, but only because Mr. Howard gained control of the board after the coup in which he managed to have an impartial director replaced by a close friend and associate of his, who refers to himself as an investigator but appears to be so partisan that he refuses to even interview me.

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Best regards,

Marc Moszkowski
President, senior founder, and largest owner

P.S.: since I cannot attribute Mr. Howard's last line to sympathy, given the current dispute, I take it as sarcasm. The line reminds again of Mr. Howard's propensity to make uninformed assumptions that now touch my private life. I think Mr. Howard should stay away from private matters. I did not make Mr. Howard privy to my whereabouts, so his last line is based on nothing but conjecture, but, to respond to his sarcasm, I am not in a position to state whether "the skiing is good" or not, since I haven't had any personal experience of it this season.

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Hope the skiing is good.

Best
Rus

From: m.moszkowski@deepgulf.net [<mailto:m.moszkowski@deepgulf.net>]
Sent: Thursday, January 25, 2018 10:04 AM
To: Rus Howard
Subject: Seventh DeepGulf letter

Rus,

please find attached my seventh letter of information to DeepGulf's investors.

Best regards,

Marc Moszkowski
President, senior founder, and largest owner

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From: mmm@deepgulf.net
Sent: Sunday, January 28, 2018 12:33 PM
To: Tjj757@live.com
Subject: FW: Eighth DeepGulf letter

Tom,

Am I to understand from your email that the \$1,250,000 has been indeed in DeepGulf's accounts all the time but Mr. Howard did not give me access to the funds? Otherwise I don't see the point in your question.

Mr. Howard, with whom I was communicating for a long time almost on a daily basis, has all the details about all my endeavors in East Timor, in Indonesia, and in other Asian countries. He was thoroughly informed of all the projects I was working on. If you want to know more, I invite you to talk with him.

Yes, indeed, it is indisputable – or, if you will, undeniable, irrefutable, certain – that what prevented me from successfully landing more contracts, whether small or large, was the utter lack of funding Mr. Howard imposed on me. Likewise, it is indisputable that if you were denied access to fuel you wouldn't be able to fly your airplane anywhere, and your probability of crashing would be singularly boosted.

Marc

P.S.: this email is copied to 23 of the 42 investors in the company, addresses for the balance being withheld from me by Mr. Howard.

From: Thomas johnson [<mailto:tjj757@live.com>]
Sent: Saturday, January 27, 2018 10:34 PM
To: m.moszkowski@deepgulf.net
Subject: Re: Eighth DeepGulf letter

Marc:

Please provide the details that support this statement.

Time-frame? Specific contracts that were unable to be secured because of an inability to access?

"The real issue is that it is indisputable that if I had had access to the \$1,250,000 that should have remained available for developing the company, after deducting of course reasonable expenses to maintain the company at home, I would have obtained one or several new contracts years ago."

Tom

What is your indisputable
Sent from [Outlook](#)

From: m.moszkowski@deepgulf.net <m.moszkowski@deepgulf.net>

Sent: Saturday, January 27, 2018 1:55 PM

To: Tjj757@live.com

Subject: Eighth DeepGulf letter

Tom,

It appears from Mr. Howard's email below that after having "*reprimanded*" me for not signing my letters as the president, Mr. Howard now "*reprimands*" me for writing as the president. Have we reached a new level of immaturity and intellectual dishonesty, or are we perhaps again playing on words?

I will of course continue to write to the investors personally, since Mr. Howard's strategy seems to be making any real fact regarding the history of the company disappear in some black hole of his design. I should have added the role of warden to the long list of quasi-judicial roles Mr. Howard has ascribed to himself.

Although I am of course not subordinated to Mr. Howard, I find myself technically un-subordinated to the board, but only because Mr. Howard gained control of the board after the coup in which he managed to have an impartial director replaced by a close friend and associate of his, who refers to himself as an investigator but appears to be so partisan that he refuses to even interview me.

You will find attached my eighth letter of information to DeepGulf's investors.

Best regards,

Marc Moszkowski

President, senior founder, and largest owner

P.S.: since I cannot attribute Mr. Howard's last line to sympathy, given the current dispute, I take it as sarcasm. The line reminds again of Mr. Howard's propensity to make uninformed assumptions that now touch my private life. I think Mr. Howard should stay away from private matters. I did not make Mr. Howard privy to my whereabouts, so his last line is based on nothing but conjecture, but, to respond to his sarcasm, I am not in a position to state whether "the skiing is good" or not, since I haven't had any personal experience of it this season.

From: Rus Howard [mailto:rus@holdg.com]

Sent: Friday, January 26, 2018 8:11 PM

To: m.moszkowski@deepgulf.net

Subject: RE: Seventh DeepGulf letter

Oops, I almost forgot to acknowledge your most recent letter. I found it to be quite informative despite the fact that you are again, as the President, sending communications to shareholders that have not been approved, despite clear instructions from the board prohibiting you from doing so. I am reprimanding you for your insubordination.

Hope the skiing is good.

Best

Rus

From: m.moszkowski@deepgulf.net [mailto:m.moszkowski@deepgulf.net]

Sent: Thursday, January 25, 2018 10:04 AM

To: Rus Howard

Subject: Seventh DeepGulf letter

Rus,

please find attached my seventh letter of information to DeepGulf's investors.

Best regards,

Marc Moszkowski

President, senior founder, and largest owner

s

Letter to the shareholders from DeepGulf's president, senior founder, and largest shareholder

31 January 2018

Dear DeepGulf Shareholder,

This is my ninth letter of information to the shareholders since November 2017.

I hope some of you will finally agree that the current nonsensical logjam needs to be straightened out. As far as the majority of the board of directors is concerned, the logjam originates in fantasy and what appears to be utter inexperience and sheer absurdity. Mr. Howard and his associate, the new director, seem to have very limited actual business experience and certainly none of the kind I have accumulated over the past 35 years or so, be it on the drawing board or in the field inshore and offshore, particularly in difficult overseas environments.

They seem to be in the grip of the strange obsession that I shouldn't have been paid for the duties I discharged, and certainly not more than \$10 to \$15 an hour for managing projects that were worth \$15 million and involved hundreds of workers in a strange and dangerous country on the other side of the planet. These projects were procured, negotiated, and conducted by me, without any input from the rest of the company.

I confidently gave my experience and intellectual property to the company, first in exchange for Mr. Howard's much vaunted fundraising expertise, and later against a capital investment of \$756,000 which I thought was raised to develop the company. It seems my confidence was somewhat naïve.

Since then, I have returned a large cash flow to the company, after deduction of my own expenses and salaries, and I have left the capital untouched – a statement that is based on simple and unquestionable arithmetic. Moreover, I have received no salary whatsoever for the past five years.

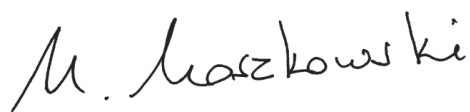
Still, Mr. Howard has inanely accused me, in writing, of having embezzled as much as a million dollars, in defiance of the most elementary common sense, and without a shred of evidence.

In the course of the past several months, while continuing to provide plethoric information about my own activities during the past decade, I have asked Mr. Howard a few simple questions:

1. For what purpose exactly did he spend the \$1,250,000 of net cash flow and capital to which he was the only person to have access, at a time he claims he was not a corporate officer reporting to the president?
2. If he was not a corporate officer reporting to the president, in what capacity did he spend the money, and under whose supervision?
3. Furthermore, did he expend all the money, or is part of it in escrow, or invested somewhere?

Of all people, I think I'm entitled to receive responses to my questions, as the president, as the senior founder, as the business and cash flow generator, and as the largest shareholder. To this day, I haven't received even an acknowledgement from Mr. Howard.

Sincerely yours.



Marc Moszkowski
President, senior founder, and largest shareholder
m.moszkowski@deepgulf.net

See my comments below, in the body of Messrs. Howard and Johnson's letter.

Marc Moszkowski

DeepGulf, Inc.
Board of Directors
February 5, 2018

Dear DeepGulf Shareholder,
HOWARD AND JOHNSON

The Board has decided to begin legal proceedings against Mr. Marc Moszkowski, President of DeepGulf. We believe we have no other choice given information recently discovered combined with Mr. Moszkowski's refusal to return to DeepGulf physical and intellectual property.

Marc Moszkowski – Mr. Howard has had Toke's financial statements in hand since the end of 2010. The statements clearly and unequivocally refer to the directors' salaries. The figures in the statements have not changed since. It is unclear to which "*information recently discovered*" Mr. Howard is referring.

Although I understand the reference to "*intellectual property*", which is inseparable from the current dispute and DeepGulf's debt to me, I fail to understand to which "*physical*" property the letter refers.

HOWARD AND JOHNSON

We further apologize that the DeepGulf Board is unable to control Mr. Moszkowski and his unauthorized and misrepresentative emails.

Marc Moszkowski – The letter Messrs. Howard and Johnson just sent the shareholders is under a "*Board of Directors*" letterhead, despite the fact that a draft of that letter was not submitted to me as one of the three directors before it was sent, and that I had no knowledge of that letter whatsoever. As a consequence, the letter was written and sent by Messrs. Howard and Johnson in a personal capacity and it is intriguing that they should forbid me from communicating with the shareholders in a personal capacity when they are precisely communicating with the shareholders in a personal capacity. Furthermore, after Mr. Howard's coup to reduce the number of directors from 4 to 3 and his appointment of a director obviously biased about me, Mr. Howard has placed me in a position of permanent minority on the board of directors which in effect creates an autocratic imbalance and leaves me with no alternative but to write to the shareholders directly, lest I be totally gagged by the other two directors. To use one political analogy, although I do understand one of the two major parties is now in the legislative minority, to my understanding the minority is not forced by the majority to completely shut-up

during this legislature, and their voice is indeed still heard. The opposite would be called dictatorship.

HOWARD AND JOHNSON

We offer you the following report on action recently taken:

HOWARD AND JOHNSON

Background

In mid 2007, DeepGulf received an inquiry about its Ultra-deepwater J-Flex Pipelay system and the possibility of using it to lay pipe between Sunrise gas field and East Timor. Mr. Howard personally passed this inquiry on to Mr. Moszkowski.

Marc Moszkowski – I read this as an attempt by Mr. Howard to portray the 2007 inquiry as if it had been sent to him specifically and that he then passed it on to me. The reality is that the senders of the inquiry were interested in a technology I had developed and patented a few years earlier and they had found DeepGulf on a website owned, paid for, and developed by me personally. They had just pressed the “*Contact us*” button which sent an email to deepgulf@deep-gulf.com, and email account that was received on my computer, not Mr. Howard’s. The date was not “*mid 2007*”, but September 10, 2007. The sender was Graeme Mitaxa, and his inquiry was on Toke Consultants’ letterhead, while his email was on Toke Petroleum S.A.’s, which shows, if any additional proof were still required, that Toke preexisted my first trip to Timor. The next day, Mr. Mitaxa called the telephone number I had provided on the website and talked to Jamille Ellingson, one of Mr. Howard’s co-workers in his office. When apprised of the phone call I immediately wrote to Mr. Mitaxa and took charge of the flow of information.

In other words, it is inappropriate for Mr. Howard to state the he “*personally passed this inquiry on to Mr. Moszkowski*”.

HOWARD AND JOHNSON

In October 2007, the Board decided to dispatch Mr. Moszkowski to East Timor to investigate the opportunity. The Board also “agreed to pay all travel, lodging and associated expenses in order for Marc to carry out overseas operations required to secure future contracts.” (*October 15, 2007 Board Minutes*)

Marc Moszkowski – Since at the time the board was not paying me a salary, nor was it paying for my expenses, I personally made the decision to travel to East Timor, and the idea that I was “*dispatched*” is quite ludicrous. Although the board may have “*agreed to pay all travel, lodging and associated expenses*”, it did not. I had to expend the monies personally.

HOWARD AND JOHNSON

In February 2008 Board Meeting Mr. Moszkowski “gave information regarding the potential for pipeline operation in East Timor following his recent time spent researching the project”. He informed the Board, and adamantly still maintains, it would not be possible to do business in Timor as a US corporation. Based upon this information, the Board acted and “A resolution was passed to create a subsidiary company to be named Toke Petroleum.” (*February 2, 2008 Board Minutes*)

Marc Moszkowski – This is an obviously untruthful statement, since we knew as early as September 2007 that Toke Petroleum already existed in East Timor, and that Mr. Mitaxa was its

President Director General. I did not write any minutes of board meetings myself, but it seems some of them could have been written a-posteriori and perhaps out of my presence.

HOWARD AND JOHNSON

In Timor, Mr. Moszkowski established a company called Toke Oil and Gas and made himself, rather than DeepGulf, an owner and the President Director General. The Board was led to believe he had established it in his name based upon the information he provided that 'it could not be owned by a US corporation'. The Board was led to believe that Mr. Moszkowski was holding it in his name for the benefit of DeepGulf.

Marc Moszkowski – I have explained elsewhere why it was absolutely not advisable, nor even possible, to establish Toke as a direct subsidiary of DeepGulf's, although it seems Messrs. Howard and Johnson have either not read my explanations, or haven't understood them. I could not have established Toke Oil and Gas myself, since I am not a Timorese citizen. The company existed before my arrival and of course I could not have "*made [my]self, rather than DeepGulf, an owner and the President Director General*", since it was the prerogative of the existing directors to appoint the President Director General and they appointed me as the replacement for Mr. Mitaxa who had just resigned over a political dispute with the Government. I continued corresponding with the gentleman for months afterwards. Incidentally, DeepGulf not being a person could not have been the President Director General.

As explained in thorough detail in other letters, I was indeed holding the interest in Toke in my name for the benefit of DeepGulf. It would have been reckless to hold that interest in DeepGulf's name.

HOWARD AND JOHNSON

Toke Oil and Gas completed \$14.9 million in contracts that ended in May 2012. During that time, Mr. Moszkowski distributed \$1.304 million in "Director Salaries". At the same time, Mr. Moszkowski was also receiving his full time DeepGulf salary. Mr. Moszkowski paid these Director Salaries without the knowledge and approval of the DeepGulf Board.

Marc Moszkowski – Messrs. Howard and Johnson need to explain for which absurd reason the payment of salaries to the foreign directors of an independent foreign company which predated my first trip to East Timor and was also DeepGulf's client should have required the "*approval of the DeepGulf Board*". Those salaries were not "*distributed*" by me in any way, but taken directly by the other directors. I personally postponed the salaries I received from Toke until two years later. For information, during that period the net "*full time*" salary I received from DeepGulf amounted to the equivalent hourly wage of \$10.30.

HOWARD AND JOHNSON

Mr. Moszkowski freely admits to distributing the funds. (*see attached - Moszkowski letter to Shareholders dated November 19, 2017 page 3 paragraph 3*). Mr. Moszkowski admits to taking \$345,000, and refuses to provide an accounting of the remaining \$959,000.

Marc Moszkowski – Although compensation is accurately described in my letter, the letter to which Messrs. Howard and Johnson are referring does not state that I distributed any fund myself. I have provided a full accounting for the \$959,000 expenditure to the DeepGulf director

who was sitting on the board before Mr. Johnson's appointment. To my knowledge he shared that information with Mr. Howard.

HOWARD AND JOHNSON

The Board has sought to uncover the details of all monies spent. In response, Mr. Moszkowski strenuously and repeatedly states that any and all records and documentation regarding Toke Oil and Gas are his, and his alone, despite DeepGulf's acquisition of Toke shares in May 2012.

Marc Moszkowski – Mr. Howard has accused me of embezzlement, before ever considering facts. I have been quite straightforward with the past director but refuse categorically to communicate with a man who has accused me of criminal activities without a shred of evidence.

HOWARD AND JOHNSON

Actions

The attached notices were sent to Mr. Moszkowski February 1, 2018 concerning civil theft of DeepGulf business opportunities. Mr. Moszkowski has 30 days to respond. His response will determine the next course of action.

Marc Moszkowski – I am now accused in writing and officially of "*civil theft of DeepGulf business opportunities*", and, as has been repeatedly observed from Mr. Howard's past accusations, again without a shred of evidence and in defiance of any decency or any common sense. The notices demand from me that I pay within 30 days the extraordinary combined amount of \$3,914,292.66 to the company. I consider the letters to be an egregious intimidation attempt and that their real purpose is no doubt to artificially offset the vast amounts the company owes me for the reimbursement of the cash I made available to the company and my unpaid salaries for the past five years.

HOWARD AND JOHNSON

Also, the Board has read his many recent letters to Shareholders and has sought to investigate his accusations, however Mr. Moszkowski refuses to provide documentation or evidence. DeepGulf records in our possession and documentation provided by Mr. Moszkowski to support his permanent visa application do not support his stories and have raised issues regarding Toke's timeline.

Marc Moszkowski – Messrs. Howard and Johnson need to explain in detail in which possible way a visa application prepared for and submitted to the U.S. immigration authorities by Mr. Howard himself could in any way affect my own description of the history of DeepGulf's activities.

Furthermore, it is mendacious on the part of Messrs. Howard and Johnson to state that I made any accusation. In contrast with Mr. Howard's usual conduct, I have only asked questions which to this day have been ignored by Messrs. Howard and Johnson, i.e.:

1. For what purpose exactly did Mr. Howard spend the \$1,250,000 of net cash flow and capital to which he was the only person to have access, at a time he claims he was not a corporate officer reporting to the president?
2. If he was not a corporate officer reporting to the president, in what capacity did he spend the money, and under whose supervision?
3. Furthermore, did he expend all the money, or is part of it in escrow, or invested somewhere?

HOWARD AND JOHNSON

Conclusion

While serving as DeepGulf's President and its Executive Officer, Mr. Moszkowski's primary responsibility was to secure a revenue stream for DeepGulf and was given the authority to do so. However, the Board believes that when presented with a lucrative opportunity, he structured the project to take the profits for himself, robbing critical funds needed to grow and develop DeepGulf.

Marc Moszkowski – Messrs. Howard and Johnson are again outrageously accusing me, this time of *“robbing critical funds needed to grow and develop DeepGulf”*. It is particularly ironic to read that critical funds were needed to grow and develop the company, when at the same time the company has failed to pay me any salary for the past 5 years and on the contrary relied on the large cash injections I provided personally. When the two debts are combined, the company owes me to this day close to \$800,000 before interest. However, and notwithstanding the fact that the salaries paid to me in East Timor were rightfully disbursed for difficult and dangerous duties actually discharged in the field, it seems it was none of Messrs. Howard and Johnson's plans to use any additional cash flow to pay for the debt and unpaid salaries owed to the company's only operational cash flow producing employee. Hence a legitimate question: assuming additional cash flow had been released to DeepGulf, for which purpose did Messrs. Howard and Johnson plan to expend it, if not for unpaid salaries and debt to the only operational employee?

In accordance to my duties, I did indeed secure a revenue stream to DeepGulf, in an amount probably in excess of \$600,000, according to revised data, after all my DeepGulf expenses and DeepGulf salaries had been paid. If to this amount is added the capital of \$756,000, the total monies expended by Mr. Howard reached in fact more than \$1,356,000 while all my personal expenses and salaries to find and negotiate the projects and actually run them, devise all the technologies required for future developments, and defend the company in the numerous legal disputes along the way was under a million. Mr. Howard never had any operational position. Mr. Howard continues to ignore my inquiries about his expenses.

The suggestion that I *“structured the project to take the profits for [my]self”* is either insane or silly, since Toke existed a long time before its President Director General contacted me, for one thing, and, for another, I postponed all salaries paid to me by Toke until more than two years after the first contract was signed.

HOWARD AND JOHNSON

If you have questions or comments, please feel free to contact us.

Marc Moszkowski – I do have a question indeed: if they have any concern for what happened to their investment, will the shareholders continue to side with Messrs. Howard and Johnson's senseless and absurd accusations, or will they open-mindedly heed my thoroughly documented calls to reason?

Best Regards

Rus Howard, Chairman, 850-377-1856

Thomas Johnson, Director, 850-712-9095